

State of New Hampshire Fuel Assistance Program Policy and Procedures Manual

Program Year 2027



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Table of Contents

1. LIST OF ATTACHMENTS.....	5
2. INTRODUCTION.....	6
COORDINATION BETWEEN FUEL ASSISTANCE AND WEATHERIZATION.....	6
3. GLOSSARY.....	7
4. ANNUAL FUEL ASSISTANCE PROGRAM SCHEDULE	10
5. THE APPLICATION PROCESS.....	12
TAKING THE APPLICATION.....	13
DOCUMENTING INCOME	13
DOCUMENTING NO OR LOW INCOME HOUSEHOLDS	14
FAP INCOME	15
NON-COUNTABLE INCOME.....	16
ALLOWABLE EXPENSES (AKA INCOME DISREGARDS).....	17
INCOME GUIDELINES	17
CALCULATING THE NUMBER OF ROOMS	17
CALCULATING HEATING COSTS	18
CALCULATING THE BENEFIT	19
COMPLETING THE APPLICATION AND CERTIFYING AS ELIGIBLE	20
CERTIFYING AN APPLICATION WITH A BENEFIT	20
6. ELIGIBILITY OF SPECIAL DWELLING OR INCOME CASES	21
CAMPERS/MOBILE HOME DWELLINGS.....	21
SUBSIDIZED HOUSING	21
SUBSIDIZED HOUSING WITH HEAT INCLUDED IN RENT	21
FUEL TANK IN A MULTI-UNIT DWELLING.....	21
INCOME FROM CONTRACTED AND/OR SEASONAL EMPLOYEES (I.E. EDUCATION)	22
PAYMENT FOR CARE PROVIDERS	22
CHILD SUPPORT PAID	23
CHILD SUPPORT RECEIVED	23
SSI AND SSA OVERPAYMENT	24
SELF EMPLOYMENT	25
SELF EMPLOYMENT DOCUMENTATION WITHOUT TAXES	26
INSTRUCTIONS FOR COMPLETING THE SELF EMPLOYMENT DECLARATION	27
RENTAL PROPERTY INCOME	29
7. SHARED HOUSING AND HOUSEHOLD MEMBERS	30
ROOMMATES	30
ROOMERS/BOARDERS (APPLICANT RENTS ROOM(S) FROM OWNER)	31
ROOMING HOUSE/DIVIDED RESIDENCE (APPLICANT IS OWNER WHO RENTS ROOM OR ROOMS).....	31
CHILD RESIDENCY WHEN CUSTODY IS SHARED.....	32
CUSTODIAL CARE PROVIDERS – ADULT CARE.....	33
NURSING HOME CLIENTS	33
FOSTER CARE FOR MINORS.....	34
STUDENTS	34
FOREIGN STUDENTS	34
QUALIFIED NONCITIZENS	35
INELIGIBLE NONCITIZENS	36
8. ENERGY EMERGENCY GUIDANCE	37

ENERGY EMERGENCY BY FUEL TYPE	38
LIFE-THREATENING ENERGY EMERGENCY BY FUEL TYPE	38
9. ALTERNATIVE PROGRAMS	39
ASSURANCE 16	39
THE SENIOR ENERGY ASSISTANCE SERVICES (SEAS)	40
SUPPLEMENTAL BENEFIT PROGRAM	40
10. APPLICANT RIGHTS AND RESPONSIBILITIES	41
CONFIDENTIALITY	41
PERSONALLY IDENTIFIABLE INFORMATION	41
COMPLAINTS	41
APPEAL AND FAIR ADMINISTRATIVE HEARING PROCEDURES	42
11. FRAUD PREVENTION AND RESPONSE	45
FRAUD PREVENTION AND REPORTING	45
CONFLICT OF INTEREST	45
FRAUD OR MISINFORMATION IN APPLICATIONS	46
12. PROGRAM MANAGEMENT	50
COMMUNICATION WITH NH DOE	50
WAIVERS	50
UNUSUAL EMERGENCIES	51
OUTREACH	53
AUTHORIZATION TO SPEND	54
OVER-AWARDING (AKA OVER-OBLIGATING)	54
REALLOCATION	54
13. BENEFIT NOTIFICATION AND PAYMENT PROCEDURES	55
BENEFIT NOTIFICATION	55
BENEFIT PAYMENTS	55
TRANSFER AND SALE OF BENEFITS	55
CHANGE OF VENDOR OR ADDRESS / TRANSFER OF BENEFIT	56
HEAT INCLUDED IN RENT PAYMENT	57
DIRECT PAYMENTS	57
OTHER ALLOWABLE PAYMENTS	57
DECEASED CLIENTS	57
14. BENEFIT REFUNDS	58
REFUNDS FROM VENDORS TO CAA	58
REFUNDS RECEIVED DURING PROGRAM YEAR ACTIVE CONTRACT PERIOD	58
REFUNDS RECEIVED AFTER CONTRACT EXPIRATION	59
RETURNING REFUNDS TO NH DOE	59
15. EXPENDITURES AND PROCUREMENT	60
FUEL ASSISTANCE PROGRAM EXPENDITURES	60
PROGRAM SUPPORT FUNDS	60
GENERAL PROCUREMENT PRACTICES	61
16. MONITORING	63
PROGRAM MONITORING REPORTS	65
17. REPORTING	66
OUTREACH PLAN AND QUARTERLY REPORTS	68

ASSURANCE 16 PLAN AND REPORTS.....	69
FINANCIAL AND MONTHLY REPORTS.....	70

1. LIST OF ATTACHMENTS

Fuel Assistance Program Application	A
FAP Income Guidelines	B
Benefit Determination and Heating Cost Formula	C
Benefit Matrix	D
Self Employment Declaration	E
Self Employment Rental Income Declaration	F
Vendor Agreement	G
Wood Vendor Agreement	H
Authorization to Spend	I
Landlord Verification	J
Benefit Notice Letter	K
Denial Notice Letter	L
Fair Administrative Hearing Procedures	M
Vendor Voucher Letter	N
Assurance 16 Outcomes Report	O
16 LIHEAP Assurances	P

2. INTRODUCTION

The NH Department of Energy (NH DOE) is responsible for the statewide administration of the Low-Income Home Energy Assistance block grant (LIHEAP) referred to as the Fuel Assistance Program (FAP). LIHEAP is federally funded through the U.S. Department of Health and Human Services (US DHHS). The NH DOE in turn contracts with five, locally based Community Action Agencies (CAA) to provide services to eligible households.

The Fuel Assistance Program provides certified income-eligible households with assistance in paying their energy bills during the winter heating season. The NH program prioritizes households where elderly, disabled persons, and/or young children reside. Benefits are calculated by considering household income for all residents in the home, housing type/size, fuel type, and the energy costs for that housing type within a region. This targeting allows those households with the lowest income and the highest energy cost to receive the highest benefits.

Coordination between Fuel Assistance and Weatherization

The NH DOE is also responsible for the administration of the Weatherization Assistance Program (WAP), funded through the U.S. Department of Energy (US DOE). Therefore, every effort will be made to coordinate services between the Fuel Assistance Program and the Weatherization Assistance Program to provide the best possible benefits to those who require services from both programs.

The LIHEAP statute (Section 2605 (b) (1) (c)) allows LIHEAP funding for low-cost residential weatherization and other cost-effective energy-related repair. LIHEAP will allocate funding for LIHEAP Funded Weatherization measures to FAP-eligible households when funds allow.

The Fuel Assistance/Electric Assistance/Weatherization Assistance Application (*Attachment A*) is the form utilized for the New Hampshire Fuel Assistance, Electric Assistance, and Weatherization Programs.

The joint Fuel Assistance/Electric Assistance/Weatherization Assistance application was designed to allow a client who is applying for fuel assistance benefits to apply for electric assistance and weatherization services at the same time. By installing energy efficiency measures, clients may reduce their dependency on the Fuel Assistance Program or may have their fuel assistance benefits extend further into the heating season since clients served by the Weatherization Assistance Program have warmer, less drafty, and more energy-efficient homes.

3. GLOSSARY

Apartment: An individual dwelling containing a bathroom, kitchen, and separate entrance located within one exterior building that has two or more separate residential units

Application Date: The date entered on the application in ECOS. This date should be the date the application was received by the CAA via email, online application, mail, fax, or in person drop off. If the applicant completed an in-person or over the phone interview in lieu of an application, this is the date of in-person interview

APTD: Aid to the Permanently and Totally Disabled

Benefit: The certified dollar amount of assistance that a FAP-certified eligible household is qualified to receive

CAA: Community Action Agency

Certifier: An appointed CAA staff member familiar with the FAP's qualification requirements who reviews the applications for completeness and accuracy and deems the applications eligible or ineligible for benefits based upon the information gathered from the applicants

Disabled: Physical or mental impairments which substantially limit one or more major life activities, which are compensated for with a disability payment such as SSDI, SSI, APTD, or VA disability for a long-term disability

ECOS: An acronym for **E**nergy **C**ommunity **O**nline **S**ystem, ECOS is the statewide software program that New Hampshire utilizes to administer the Fuel Assistance Program.

Elderly: Age sixty (60) years or older

Energy Emergency: A condition that poses a serious threat to the health and safety of the household due to the lack of home energy

FANF: Financial Assistance to Needy Families (formerly TANF)

Foster Care Payments: A *reimbursement* for the in-home care of the foster person that is not considered income to the household. The foster adult/child is not listed or counted as a household member on the application. Foster care payments must be documented and noted in the comments section of the application.

Gross Income: Total income before any deductions including Social Security, federal income tax (FICA), medical insurance, retirement, and/or flexible benefit plans

Hardship: An unusual economic circumstance including high energy costs, high housing costs, and emergency household or car repairs that affects an applicant's ability to pay energy costs.

Home Energy: A source of heating or cooling in a residential dwelling

Household: Any individual or group of individuals who are living together as one economic unit and whose residential energy is customarily purchased in common or is made as undesignated payments in the form of rent

Information Memoranda (IM): A document used to establish and/or confirm program policy

Intake Person: The appointed CAA staff member who obtains the necessary information to complete a FAP application

LIHEAP: Low Income Home Energy Assistance Program funded by the United States Department of Health and Human Services as outlined in the Low-Income Home Energy Assistance Act of 1981 (Public law 97-35 as amended)

NH DOE: New Hampshire Department of Energy

Priority Applications (for vulnerable households): FAP applications for households with at least one household member who is age 60 or over, disabled, or a child under 6 years of age

PY (program year): October 1 - September 30 of the following year

Residence: An immovable structure where a household resides

SEAS (Senior Energy Assistance Services): A New Hampshire Health and Human Services, Bureau of Adult and Aging Services program that provides funding for households with elderly members who apply for FAP but have a household income that exceeds FAP income guidelines

SNAP: Supplemental Nutrition Assistance Program (also known as food stamps)

SSA (Social Security): Monthly benefits from the Social Security Administration paid to elderly individuals (and their dependents) or the dependent survivors of a deceased individual with an employment history

SSDI (Social Security): Monthly benefits from the Social Security Administration paid to disabled individuals (and their dependents) who have an employment history

SSI (Supplemental Security Income): Monthly benefits from the Social Security Administration paid to disabled and elderly individuals with little or no employment history

Vendor: The entity providing fuel or utilities to the customer or the landlord providing heat included in rent; also may be referred to as energy supplier or provider

4. ANNUAL FUEL ASSISTANCE PROGRAM SCHEDULE

July	CAAs begin taking and certifying FAP applications for any household with a member who is age 60 or over, disabled, or a child under 6 years of age or a household who uses wood as their primary heating fuel source.
August	CAAs continue processing priority applications
September	Annual program meeting held with vendors and staff. September 30 is the end of the federal fiscal year/funding period.
October	October is the start of the federal fiscal year and LIHEAP/FAP funding period. CAAs must submit start of year items including their annual budget, outreach plan and Assurance 16 plan by October 1. CAAs all officially begin taking and certifying FAP applications for all applicants, prioritizing households that heat with a deliverable fuel. Weatherization begins responding to no-heat emergencies.
November	Preparation for the FAP season to open begins, including opening communication to vendors and a press release issued. Vendor and client notifications begin just before or after Thanksgiving.
December	FAP opens after New Hampshire receives notification of the federal LIHEAP grant award, generally by December 1. The CAAs begin making vendor payments. Applications for households experiencing an energy emergency will be processed within 18 hours for life-threatening situations and within 48 hours for situations that are non- life-threatening.
January	FAP Program and Fiscal Monitoring begin at the CAAs.
February	Updated Federal Poverty Guidelines, released each January, will be programmed into system. Monitoring continues at the CAAs.
March	Monitoring continues at the CAAs. Weatherization no-heat emergencies end on March 31.
April	The deadline for households to apply for FAP is April 30 (or first weekday in May if on a weekend). Season closing communication sent to vendors.

May CAA's are given a deadline this month to finish certifying applications and making benefit payments to vendors.

June Details finalized for upcoming FAP season, including application, vendor agreements, income guidelines, benefits, and the updated state manual.

5. THE APPLICATION PROCESS

Eligibility for the New Hampshire Fuel Assistance Program (FAP) is based upon the following requirements:

- The household's primary residence is in New Hampshire
- Household members occupy the residence at time of application and during heating season
- The total household size – all residents who are members of that household
- The total household's total gross income
- The household is responsible for energy costs, either directly or through rent payment

The New Hampshire definition of "household" is drawn directly from the Federal Low Income Home Energy Assistance Act, as amended. This definition provides two criteria which must be met to establish the presence of a "household":

- An individual or group of individuals living together as one "economic unit" who purchase energy in common

Categorical eligibility, where a person or household qualifies for one program simply because they are a participant in another program, shall not be utilized for the FAP. Any household wishing to participate in the program must complete an application and document eligibility based upon *household income for all members*.

The local CAA shall determine eligibility through the application and certification process. The CAA shall ensure that applicants have provided required and accurate documentation of gross income as indicated on the application for all household members and attest to the truth of the information submitted. It is the responsibility of the applicant to provide all required documentation to the CAA as part of the application process. All applications must be complete, with all supporting documentation attached. Proof of valid Social Security numbers (SSN) or appropriate documentation for qualified non-citizens are required for all household members listed on the FAP application. A copy of the documentation should be saved in the application. If an applicant does not want their SSN documentation stored, a staff member must review the documentation to verify it is valid, enter the number into ECOS, and then document this verification process in notes. Babies under 1 year of age may be entered as a household member without a Social Security number by selecting "No identification number" in ECOS and listing the reason as child under 1 year of age. If this child appears on a future application above age 1, the correct SSN must be verified and entered at that time.

A person or household who received a FAP benefit is not eligible for another FAP benefit in the same program year. Any subsequent applications for assistance from the program in the same

benefit year will be denied for previous assistance. If a person was previously included on an application that was awarded a benefit that year, they cannot be included in a second application that program year.

The New Hampshire Fuel Assistance Program procedures are intended to ensure that low-income households have access to services in a timely manner. During the program year of December 1 through the end of the program on/around April 30, an application should be started within 30 days. If an applicant chooses to complete their application in person, the applicant must have the opportunity to schedule an appointment within 30 days of the request.

Taking the Application

All required information must be recorded accurately on the FAP application, including the number of household members, dwelling data, income information, vendor name and account information and a dated signature from the applicant. Utility accounts should be verified annually, with accounts verified at least every other year for liquid fuel accounts (oil, kerosene, propane). The application can be submitted on paper, online via the ECOS system, via fax, email, or in-person as an interview. Regardless of the application method, it is the responsibility of the CAA to verify that this information is complete and correct.

Documenting Income

Applicants must provide documentation for all gross income for the household. This documentation may include benefit letters, payroll stubs, signed statements from the payment source, statements for pension or interest, and other documentation as deemed appropriate by the CAA. Use of bank statements as documentation of income must be approved via waiver by Department of Energy staff. For sources of earned or unearned income, please consult the lists that follow in this section. It is the responsibility of the CAA to ensure that all income documentation is accurate, legible, and complete and uploaded and saved properly into ECOS.

Income is calculated by adding all countable, gross income from every source for each household member listed on the FAP application. The countable income for all household members must be entered into ECOS, which will then create a total household income to determine household income eligibility. Income documented should reflect the current household income, most frequently the income during the month prior to application submission. If the household's financial circumstances change during the application review process, the present month income can be used to establish eligibility.

Income can be entered in various frequencies, such as weekly, monthly, or annually, and the ECOS system will automatically add all income and annualize the amount. For example, if a person is paid weekly, the most recent four consecutive paychecks should have the gross amounts entered. If a household member receives a Social Security benefit once a month, the monthly gross amount should be entered. If someone receives a cash assistance benefit in the same amount twice each month, it should be entered as semimonthly. Some income sources should be listed annually, such as self-employment income, annuities, IRAs, commission, and seasonal or contracted employees, including educational employees (e.g., teachers or school administrators). Section 6 contains guidance on special income situations.

Expenses that are eligible as income deductions, such as Medicare deductions or child support paid, can be entered as an expense and will reduce the total income. Any income calculations not captured by the ECOS system should be documented in notes or on an uploaded file.

Documenting No or Low Income Households

Households with no or very low income must provide written documentation of how the household has met its basic living expenses such as rent, energy costs, and food. Household income is considered very low if the total is less than the amount needed for monthly rent or mortgage. Documentation may include a statement from town or city welfare, friends or family, a SNAP notification letter, or other assistance provided during the determination period.

FAP Income

FAP Income refers to the total cash receipts before taxes from the following sources:

Adoption subsidies
Alimony
Annuity payments
Assistantships (awarded on an annual basis to a qualified graduate student providing a stipend and requiring part-time teaching, research, or residence hall duties)
Commissions
Dividends over \$50 a year
Gambling winnings (taxable)
Government employee pensions (including Military Retirement Pay)
Grants (taxable grants used for education purposes)
Interest over \$50 a year
Lottery winnings (taxable)
Military family allotments
Other *regular* (six months or longer) support from someone not living in the household
Pensions
Periodic receipts from estates and/or trusts
Railroad retirement (net after Medicare deductions)
Regular insurance payments
Regular worker's compensation payments
Retirement withdrawals (such as 401K or 401B withdrawals) – excluding loans
Rental income (net)
Royalties (net)
Salaries and money wages before any deductions
Self-employment (net non-farm)
Social Security payments
SSI (except for minor disabled children)
State welfare payments (APTD, ANB, FANF, OAA, RCA)
Strike pay
Tip income (may be self-declared if no other documentation is available)
Training stipends
Tribal income
Unemployment compensation
Veteran's payments

Non-countable Income

Aid and Attendance VA benefit for severely disabled veterans
Alaska Native Claims Settlement payments if excluded per Alaska Native Claims Settlement Act
Assets drawn down as withdrawals from a bank
Capital gains
Child support (regular) payments received during the income period
Corporation for National Service payments including VISTA, AmeriCorps, Senior Companions, Foster Grandparents
Dividends: the first \$50 earned annually
Electric Assistance Program benefits
Employee fringe benefits, including employer- or union-paid portion of health insurance
Earned Income Credit
Earned income from full-time high school students
Foster Care reimbursements
Federal work-study for students
Fellowships (scholarship or grant awarded to a graduate student in a college/university)
Gifts – one time or irregular payments received fewer than 6 months
Goods or housing received in lieu of wages
Interest: the first \$50 earned annually
Jury duty stipend
Loans
Lump-sum inheritances
Money earned as part of an SSI PASS Plan
Non-taxable grants
Nursing home payments - mandatory monthly payment made on behalf of a spouse/dependent
One-time or irregular payments from a welfare agency to a family or person
One-time compensation for injury and/or insurance payments
Reimbursement paid to an employee by employer to compensate for money spent as a result of their employment
Respite care or difficulty of care payments
Reverse mortgages
Sale of a house, car, truck, or tractor (non-business assets in general)
Scholarships or other educational financial assistance funded in whole or in part by federal funds for attendance costs (tuition, fees, materials, supplies, books, room/board)
Senior Community Service Employment Program (SCSEP) income (e.g. Operation Able)
Special Needs Trusts
SSI for children under age 18
Stable Account funds (aka Able Account)
Tax refunds
Value of food or fuel produced and consumed on farms

Allowable Expenses (aka Income Disregards)

Child support (regular) payments paid out during the income period

\$50 of earned interest and/or dividends annually

Medicare deductions from Social Security or Railroad Retirement benefits (Part B and Part D)

Mileage Reimbursement from employer (if reflected in gross amount on pay stub)

Income Guidelines

At the time of the application, total household size and total income are needed to determine the appropriate income level under the **FAP Income Guidelines (Attachment B)**. Income eligibility is divided into six levels based on the most recent Federal Poverty Guidelines (FPG):

A	75% FPG or less
B	75.01-100% FPG
C	100.01-125% FPG
D	125.01-150%, FPG
E	150.01-175% FPG
F	175.01% FPG up to 60% State Median Income (SMI)

Level F eligibility may be decreased to 200% FPG if funds are limited during the program year.

Calculating the Number of Rooms

The total number of rooms in a residential dwelling is necessary to utilize the **Heating Cost Formula (Attachment C)** when calculating heating costs. Non-room spaces such as hallways, unfinished basements, garages, attics, closets, etc., are not counted in the total number of rooms.

The Heating Cost Tables are based upon Design Heat Load Calculations (DHLC) and each type of unit assumes a standard room size.

The standard room sizes are as follows:

Single Family House:	144 square feet
Apartment, Condo or Duplex:	120 square feet
Mobile Home:	100 square feet

When a room is larger than the standard room size, the square foot total may be relied upon to calculate the number of rooms for a residential dwelling.

Examples:

1. The kitchen/living rooms in a mobile home are located in one large room with no dividing wall. The approximate room dimensions (supplied by the applicant) are 14 feet by 10 feet or 140 square feet. This would count as TWO rooms, since it is more than the room size by the DHLC for mobile homes of 100 square feet.
2. The kitchen, living room and bedroom are all located in one room of a single-family house. The approximate room dimension is 270 square feet. This would count as TWO rooms, as it is more than the room size used for a single-family house of 144 square feet. However, it is only two rooms, not three, since it is less than twice the DHLC amount of 288 sq ft (144 x 2).
3. The dining room/living room combination is located in one room in an apartment. The approximate room dimensions 110 square feet. This would count as ONE room, since it is less than the room size used by the DHLC for apartments of 120 square feet.

Calculating Heating Costs

In addition to income, annual household heating costs are also used to determine eligibility for the FAP. Annual heating costs can be calculated two ways, either by using the household's actual energy usage or by using the **Heating Cost Estimate (Attachment C)** that is updated annually. By entering information regarding the dwelling and fuel type, an estimated heating cost is established. The system will automatically use this amount in the benefit determination.

Actual heating costs can be used for households with high energy usage. Actual heating costs must include an annual amount and can be documented with receipts, bills, vendor printouts, or statements. Annual heating costs can be entered into ECOS on the Energy Billing Data Detail screen under the Vendor tab. You can enter the actual annual heating cost in the Billing box on this screen. To use this amount in the benefit determination, the person issuing the benefit will want to select the heating cost type titled "Client Reported" (instead of Design Heat Load). This will use the actual heating cost amount entered instead of the system estimated cost. You can review this determination and compare it to the Design Heat Load determination to see which yields the best benefit for the applicant.

Calculating the Benefit

The household's basic benefit is calculated by matching the income level (A-75%, B-100%, C-125%, D-150%, E-175%, and F-200% or 60% SMI) from the **Income Guidelines (Attachment B)** to the appropriate heating cost level as listed in the following Annual Heating Cost chart:

ANNUAL HEATING COST	USAGE CATEGORY
\$3,500 or more	AA
\$1,750 - \$3,499	BB
\$1,000 - \$1,749	CC
Up to \$1,000	DD

The income level and annual energy costs are then combined through the use of a **Benefit Matrix**. Below is an example; see **Attachment D** for the current year Benefit Matrix.

EXAMPLE MATRIX (DELIVERABLE FUELS)	INCOME LEVEL					
	A (75%)	B (100%)	C (125%)	D (150%)	E (175%)	F (60% SMI)
AA (\$3,500+)	2,177	1,887	1,597	1,306	1,016	726
BB (\$1,750-\$3,499)	1,355	1,174	1,064	871	678	484
CC (\$1,000-\$1,749)	1,016	880	798	653	508	363
DD (\$1-\$1,000)	677	587	497	436	338	256

EXAMPLE MATRIX (UTILITIES)	INCOME LEVEL					
	A (75%)	B (100%)	C (125%)	D (150%)	E (175%)	F (60% SMI)
AA (\$3,500+)	1,361	1,180	999	817	635	454
BB (\$1,750-\$3,499)	847	734	665	545	424	303
CC (\$1,000-\$1,749)	635	550	499	409	318	227
DD (\$1-\$1,000)	424	367	311	273	212	160

For example, a one-person household with an income of \$500/monthly who would fall under income level A on the **Income Guidelines (Attachment B)**; and who had actual or estimated annual **deliverable fuel** energy usage of \$1,800 that would fall under level BB on the Annual Heating Cost chart, would receive a benefit of \$1,355 using the Benefit Matrix example above. The Benefit Matrix demonstrates how the highest level of assistance is provided to the lowest income households with the highest energy burden.

Completing the Application and Certifying as Eligible

When the program is open, all applications must be completed by intake staff within 30 days of the application date. If an applicant does not provide all of the required documentation within 30 days of the application date, the application will be denied for missing documentation. The applicant will be provided notification of what documents are still needed for completion and the application can be reopened if these missing documents are received.

An application can be certified eligible when all the questions on the application that are necessary for determination of eligibility are answered, and complete required documentation is attached.

Certifying an Application with a Benefit

Each application must then be reviewed and either denied or certified with a benefit within 30 days from of the date the intake staff member completed the application. Please note that applications experiencing an energy emergency require more immediate attention (*see Energy Emergency Guidance*).

A certifier reviews all applications for accuracy and completeness and determines eligibility or ineligibility based upon the information provided. The Certifier will indicate that a household is either eligible or ineligible by certifying the application with a benefit or denying the application. Upon certification, the Certifier must attest in ECOS that they have reviewed the application and it is complete. The certifier must be a different CAA staff person than the intake staff for that application.

Written notification of eligibility or denial must be sent to the applicant within 15 days of certification from opening of the program until April 30. When a household is found eligible for a FAP benefit, a **Benefit Notification Letter (Attachment K)** is sent to the applicant and to the vendor. When a household is ineligible for a FAP benefit, an **Applicant Denial Letter (Attachment L)** and a **Fair Administrative Hearing Notice (Attachment M)** are mailed to the applicant.

Copies of all correspondence pertaining to eligibility must be maintained and be easily accessible. ECOS will generate and save all system-generated letters, but any other correspondence pertaining to eligibility generated outside of ECOS must be maintained in ECOS files or notes. CAAs are not required to keep hard copies, but all program information including correspondence, applications, and reports and letters must be accessible for three years after the final expenditures for the applicable program year has ended.

6. ELIGIBILITY OF SPECIAL DWELLING OR INCOME CASES

The following procedures are to be used to determine eligibility for applicants with the following circumstances:

Campers/Mobile Home Dwellings

Residents in campers or mobile homes are ineligible to receive a Fuel Assistance benefit unless it is permanently attached to the ground. Acceptable documentation of permanent attachment includes: an invoice for mobile home park rent; a utility bill for service provided to the camper or mobile home; or a property tax bill.

Subsidized Housing

For FAP purposes, subsidized housing is defined as a rental unit with a rental amount that changes or is adjusted according to the tenant's household income. Typically, the housing authority or housing program calculates the participant's rent based on a percentage of income taking into consideration the type of dwelling, heating, cooling, and utility costs.

Tenants residing in subsidized housing will be eligible for benefits if they meet all other FAP requirements for eligibility, they are responsible for paying their own heating bill, and they have annual heating costs.

Subsidized Housing with Heat Included in Rent

Tenants residing in subsidized housing will not be eligible for benefits if their heat is included in the rent and they are not responsible for paying their own heating bill. The application should still be fully documented as these households may still be eligible for non-FAP funded Weatherization.

Fuel Tank in a Multi-unit Dwelling

When an applicant lives in a dwelling in which the fuel tank is shared amongst two or more separate units, please apply the benefit as below:

- If heat is included in rent, process with a landlord verification form and payment to landlord.
- If heat is not included in rent and the applicant has a metered account for their unit, payment goes to the vendor.

- If the heat is not included in rent and there is no individual client account, make direct payment to the applicant.

Income from Contracted and/or Seasonal Employees (i.e. Education)

Seasonal employees are hired annually for recurring periods of work that is less than twelve months a year due to their specific industry. Educational employees are the most common example; teachers and education staff may have a twelve-month contract but only work nine months of the year due to the nature of their work. While such income may be best reported for a twelve-month period, this type of employment has unique considerations.

Contracted salaried employees are paid through fixed compensation rather than an hourly wage. A salaried employee is paid the same amount regardless of exact hours worked and generally is not eligible for overtime pay. The contract may be for a twelve-month period, but the work may happen over fewer months.

- Contractual, salaried employees should provide their current contract as income documentation. This may be a contract that begins after the application date (for example, if the applicant applies on August 1 but their contract begins on August 15). If a contract recently ended and they have not received a new contract, the most recent contract can be used provided it ended less than three months prior to application date. Contracts are commonly for twelve-month periods, but some, such as part-time faculty contracts at colleges, may be for a shorter duration.

Hourly seasonal employees may have a contract or no contract. School employees such as paraprofessionals, for example, may have a contract but be paid hourly for 'up to' a certain number of hours. An hourly contract may list the rate of pay and approximate hours, but hours and wages can fluctuate.

- Hourly seasonal employees can provide documentation of current income through paystubs. If the employee is not currently working but intends to return to their seasonal position within the next three months (school employees in summer months, for example), other income documentation can be considered. Examples include documentation from employer, an upcoming contract, or the most recent W-2 (if the staff member was in the position the full prior year). If the employee was in a seasonal position previously but no longer intends to return to that position, prior income does not need to be considered.

Payment for Care Providers

Respite care: Respite care funds are considered a reimbursement rather than income and therefore shall not be considered income for the purpose of determining income eligibility for FAP. Respite care provides short-term care for a family member with a developmental

disability or chronic health condition. Respite care programs provide reimbursement for service paid by the family member or caregiver to allow them time away from their challenging responsibility of taking care of the disabled or ill individual living in their household.

Given that respite care funds are provided on a *reimbursement* basis, it is **not** considered as income for the purposes of determining income eligibility.

Difficulty of care payments: This type of payment is defined as ‘payment to a family or household members of qualified disabled or chronically ill individuals who would be otherwise institutionalized. Payments are generally provided because the disability is so severe that the caretaker is unable to hold a job.’ Given the circumstances in which someone would receive such a payment, it is **not** considered as income for the purposes of determining income eligibility. This includes payment for room and board, which is not considered income.

Personal care services payments: This type of payment is defined as ‘payment to a family or household members of qualified disabled or chronically ill individuals for the day to day needs (bathing, dressing, eating etc) of the individual.’ Given the circumstances in which someone would receive such a payment, it is **not** considered as income for the purposes of determining income eligibility.

Child Support Paid

Child Support paid is considered an income expense if the person paying child support has documentation. Documentation examples include payroll deductions, verification from Child Support Hotline, copies of check stubs, etc. Documentation is required as this has an impact on eligibility and benefit amount.

If there is no documentation of the child support paid, it cannot be entered as an expense to reduce total income.

Child Support Received

Child Support received is not considered income. No documentation is needed if the household has other income sources that can cover their basic needs. However, if a household has no or very low income, the documentation of child support received (either on the application or through another method) is important. If a household member needs to complete a No or Low Income Declaration, staff can request verification of child support received as deemed necessary to help verify how the household is meeting their basic needs.

Cash assistance received in lieu of child support will continue to be counted as income.

SSI and SSA Overpayment

When a client's payment from SSI or SSA is reduced due to an overpayment, only the amount actually received should be counted as income.

The letter from Social Security should clearly identify the overpayment deduction and the amount that the client actually received. In some instances, the letter may show the amount before and after the deduction. The amount after the deduction is the amount that the client received and is the amount that should be counted as income. It is necessary to enter the gross amount before the deduction as income and then the amount of the overpayment as an expense.

Self Employment

Income must be documented on an annual basis for all self-employed individuals. If an individual has not been self-employed for a full year, the total number of months from the start of the self-employment will be used to calculate income. Self-employed individuals must provide their most current federal tax return (Form 1040) along with all appropriate supporting schedules/forms to document their income from January 1 through December 31. After April 15 each year, the prior year tax return should be provided unless there is a documented copy of the tax filing extension.

- For sole proprietorships, Schedule C-EZ or Schedule C is required, with all attendant supporting forms such as *Form 8829-Expenses for Business Use of Your Home* and *Form 4562-Depreciation and Amortization*.
- For partnerships, *Form 1065* is required, with all attendant *Schedule K-1* forms and any other supporting forms such as *Form 4562-Depreciation and Amortization* and any statements for aggregated other deductions.
- For corporations, *Form 1120* or *1120S* is required, with all attendant supporting forms and schedules such as *Form 1125A-Cost of Goods Sold*, *Schedule K-1* showing shareholders' percentage of ownership in the corporation, *Form 4562-Depreciation and Amortization*, *Form 8825-Rental Real Estate Income and Expenses of a Partnership or an S Corporation*, and any statements for aggregated other deductions.
- For farm/agricultural businesses, Schedule F is required, with all attendant forms and schedules such as *Form 4562- Depreciation and Amortization*.

Additional supporting documents may be requested upon review of the above documents to clarify the information represented.

There are some expenses that are not allowable for FAP. These may be included on the tax return but should not be entered as an expense into ECOS. Because of this, the total net profit or loss in ECOS may not match the total net profit or loss on the tax form. This includes:

- Depreciation (listed on Schedule C, Part II, item 13 OR on Form 4562)
- Amortization (on Form 4562)
- Business Use of Home (on Schedule C, this is in Part II, item 30)

If the business address matches the home address on the application, this may indicate that some of the dwelling is used for business purposes. Staff should verify how many rooms, if any, are utilized for business purposes. This number of rooms should be subtracted from the FAP application.

For example, if an applicant has a 4 room apartment that is using 1 room for business, only 3 rooms would be entered in the household for FAP benefit calculations. If the business is operated out of an unheated space, such as a workshop or garage that is separate from the home, the number of rooms will not be reduced.

Negative self-employment income is not to be subtracted from other household income but is to be counted as zero (0).

For example: A household has two separate businesses. Business A has a net profit of \$800, and business B has a loss of (\$600). For FAP purposes, income would be recorded as Business A income = \$800, and Business B = \$0.

Self Employment Documentation without Taxes

If the self-employed applicant has not filed a federal tax return or was not self-employed the previous year, a **Self-Employment Declaration (Attachment E)** plus back-up documentation must be used for documentation purposes.

Supporting documentation for the **Self-Employment Declaration (Attachment E)** or the **Self-Employment Rental Income Declaration (Attachment F)**, including business records and receipts, must be provided by the applicant in an orderly format. The application cannot be processed until the supporting documentation is presented. It is the applicant's responsibility to provide adequate proof of income and expenses. If the CAA sees any potential discrepancies or red flags, a full review of the submitted documentation must occur to ensure the income documentation is accurate and complete.

If the business address matches the home address on the application, this may indicate that some of the dwelling is used for business purposes. Staff should verify how many rooms, if any, are utilized for business purposes and follow the policy to reduce the number of rooms by any used for business purposes. Additionally, if there is an amount listed for Rent on a Self Employment Declaration form, staff should verify that these are not costs for the primary residence. Rent on this form should not include rent for the address on the application.

Instructions for Completing the Self Employment Declaration

The following is a list of specific descriptions for the allowable deductions for self-employment income:

Advertising: Costs relating to business advertising in newspapers, radio, television, leaflets, brochures, etc. are deductible, with the exception of political ads and foreign advertising.

Bank Charges: The costs of maintaining a business bank account such as monthly service charges, check cashing charges, bad check charges, etc. are deductible.

Car & Truck: There are two methods for determining deductions: actual costs and standard mileage rate. If using the actual costs method, deduct gas, oil, tolls, tires, licenses, garage rent, parking fees, lease fees, and rental fees. If a car is used for both business and personal use, multiply the actual costs by the percent of time the car or truck is used for business. For example, a car used 60% of the time for business with \$2,000 annual costs would have a \$1,200 deduction ($60\% \times \$2,000 = \$1,200$). If using the standard mileage rate, multiply the business-related miles by the current IRS rate for mileage to arrive at the allowable deduction. Parking fees, tolls, and state and local personal property taxes may also be deducted. Records must be kept showing daily business mileage and a yearly business mileage figure.

Cleaning: The cost of cleaning and janitorial services is deductible.

Fuel: Fuel costs relating to the purchase of gasoline, diesel, gasohol, etc. used for work-related equipment are deductible (refer to the Car & Truck section below for transportation fuel).

Insurance: Payments for work-related insurance premiums are deductible, including premiums for fire, theft, flood, casualty, merchandise, inventory, liability, public liability, malpractice, worker's compensation, state unemployment insurance, use and occupancy, and business interruption. Employees' group insurance is also deductible as long as the strict nondiscrimination rules are complied with.

Interest: Interest payments on business loans, business credit cards (used to purchase strictly business items), and mortgages are deductible.

Office Expenses: The cost of office supplies for business are deductible as long as they are using within one year. Cost of rent and utilities associate with business office may also be deductible.

Postage: The cost of postage and shipping for business purposes are deductible.

Rent: Costs relating to the use of property that the applicant does not own such as cars, tools, equipment, and property are deductible.

Repairs: Minor costs relating to the repair of work-related property or equipment are deductible.

Supplies: The costs of incidental supplies and materials such as office supplies, tools, books, and professional equipment are deductible if they are normally used up within a year.

Taxes: Taxes relating to the cost of running a business or a profession are deductible, including sales, business profits, licenses, regulatory fees, state unemployment payments, corporate franchise taxes, user fees, and property taxes.

Travel: Normal expenses are deductible when traveling for business. Deductible expenses include airplane, bus, and train tickets, operating and maintaining vehicles (refer to the Car & Truck section), meals, lodging, and other ordinary and necessary expenses relating to business travel. Expenses that are lavish, extravagant, or for personal or vacation purposes cannot be deducted. Expenses for travel/commuting between home and office cannot be deducted.

Utilities: Normal costs associated with running an office or business are deductible, such as electricity, heating fuels, and telephone. Note: If a home office is used, only a cell phone used exclusively for business, a second phone line or actual long distance business phone calls are deductible.

Wages: Wages, salaries, bonuses, and gifts paid to employees, including anyone who is not a member of the household applying for the FAP, are deductible. In the case of household members on a payroll, be sure that their income is not counted twice.

Other: Bad business debts are deductible if there has been an actual loss of money or the amount of money to be paid was reported as income. Membership dues and subscriptions to professional, technical, or trade journals that deal with the applicant's business are deductible. Legal and professional fees (i.e., accountants, lawyers, etc.) that are ordinary and necessary expenses of operating a business are deductible. Legal fees paid to acquire a business are not deductible. Penalties and fines resulting from the non-performance of a contract are deductible. However, fines and penalties resulting from criminal or legal action paid to any government agency are not deductible. The costs of medical insurance premiums are deductible at a 25 percent rate (i.e., \$1,000 premium x 25% = \$250 deduction). All deductions under the "Other" heading must be documented and have a schedule attached.

Rental Property Income

Applicant landlords must provide their most current signed federal tax return (*Form 1040*), along with *Schedule E*. If the rental income is not present on the most current tax return, applicants must complete a **Rental Income Declaration (*Attachment F*)**. If an individual has not owned the property for a full year, the income since the start of the ownership will be used to enter income by determining a monthly amount.

Rental business expenses from occupied rental units are deductible. These expenses may include fuel and electric costs, property taxes, repairs, mortgage interest, advertising, and general maintenance costs. The landlord's personal living space expenses cannot be deducted. In a situation where an applicant owns and resides in one apartment of a two-family house and one half (1/2) of the building is rental producing, one half (1/2) of the expenses may be deducted.

7. SHARED HOUSING AND HOUSEHOLD MEMBERS

Shared housing is a situation where two or more individuals reside in the same residence, but as separate households. These households may include individuals who are roomer/boarders, custodial caregivers, owners of rooming houses/divided residences, or persons receiving foster care payments for qualified individuals. The following descriptions provide guidance to the CAAs for evaluating the eligibility for an applicant in shared housing. **All applications will first be based on the premise that a household consists of all individuals living within a residential unit. All other living situations will be evaluated on a case-by-case basis.**

Roommates

A roommate is defined for FAP purposes as an individual who shares a residential unit with another individual(s), equally sharing energy expenses and living together as one economic unit. A roommate differs from a roomer/boarder because roommates share in the cost of the rent and share rented living quarters, while a roomer/boarder does not share living quarters. Roommates may have their names on the lease or may be unofficially subletting.

All roommates within a residential unit will be considered to be household members. The income for all roommates within a household will be calculated to determine FAP eligibility and the amount of the benefit.

In a situation where one residential unit is occupied by two separate individuals residing in fully separate living quarters with each individual being responsible for their own documented heating expenses, a waiver will be granted to regard them as non-roommates and separate households. Proof must be provided to document the two separate heating systems within the one unit, showing the separate account numbers in the names of the individually responsible parties for the unit's heating expenses.

Roomers/Boarders (applicant rents room(s) from owner)

A roomer/boarder is defined for FAP purposes as an unrelated individual who lives in a specified room(s) within a boarding/rooming house or divided residence and who pays a stipulated amount for lodging, which may include kitchen privileges. The roomer/boarder must have at least one room for their own private use. A roomer/boarder must live independently without supportive services provided by the landlord or by any other member of the rooming house or divided residence. Roomers/boarders who pay for their lodging in either a commercial establishment or a private home that is their primary home may be eligible for LIHEAP benefits, including individuals staying in a hotel or motel long-term (for a minimum of one month prior to application date).

Roomers/Boarders cannot be related by blood, marriage or adoption to any member in the residence.

A roomer/boarder must provide a lease or other written agreement with the owner of the house and documentation of previously paid rent. A roomer/boarder must pay rent directly to the owner of the rooming house/divided residence. Only the number of rooms used by the roomer/boarder for private use should be included. Anyone whose name appears on a household energy account cannot be considered a roomer/boarder.

Rooming House/Divided Residence (applicant is owner who rents room or rooms)

When the owner of a rooming house/divided residence applies for fuel assistance, the following criteria will be used for determining eligibility:

- In owner-occupied licensed homes, the owner will be considered self-employed.
- Owner-occupied non-licensed homes will be treated as one household and income from all residents will be submitted and documented unless a resident(s) meet(s) the definition as a roomer/boarder.

A non-licensed home might be a private residence that has been divided (renting out a basement or in-law apartment, for example, or a bedroom). In a situation where the owner of the home is the applicant, the rental income must be included as income and any rooms used exclusively by the renter(s) should be excluded from total rooms on the owner's application.

Note: Residents of institutions or community-based facilities that provide ongoing services, care, or treatment are not eligible to receive FAP benefits under either of the following circumstances:

- A federal, state or local operating grant/subsidy is received by the institution or facility.
- Residents do not otherwise personally experience an energy vulnerability which can be reduced by the FAP.

Child Residency When Custody is Shared

Children living with parents who share custody and maintain separate households can be counted as a household member in only one household each year. The parent who applies for assistance first may include the child in their household if they have primary or shared custody. If there is a dispute about which household should 'claim' the child on the application, applicants should provide court documentation such as physical custody orders or parenting plans to determine where the child resides the majority of the time. Parents can also take turns each year including the child in their household application.

If there is no parental rights/custody document in place or if shared custody is divided evenly (50/50), the applicant can provide documentation that may include, but is not limited to, verification from the school where the child is enrolled, DHHS award letter for SNAP or Cash Assistance that includes the child, a physician's statement verifying residence on record, or day care provider statements verifying residence on record. Parents can also sign a Child Residency Agreement.

If custody is shared equally and the dispute cannot be resolved, the parent who applies earliest each year can include the children in the household.

Custodial Care Providers – Adult Care

A custodial care provider is defined for FAP purposes as a caregiver who lives with an elderly (60 and over) or disabled individual(s) solely for the purpose of providing essential health or supportive services to the elderly or disabled individual(s).

The custodial care provider will not be included as a household member on the application and the provider income will not be included in the total household income if either of the following conditions exists:

- The custodial care provider has a primary residence somewhere else.
- The custodial care provider gave up a primary residence for the sole purpose of giving care to the elderly or disabled individual(s).

The applicant must have a letter from a physician stating the medical need for an in-home provider. This procedure should only be utilized in cases when it is readily apparent to the CAA FAP Director that the elderly or disabled head of household's ability to remain in the home is dependent upon this relationship with the custodial care provider.

If an adult in custodial care resides within the care provider household (reverse live-in care, sometimes referred to as 'Adult Foster Care'), the applicant household should provide documentation that shows they are the legal care provider (i.e. court documentation or home provider agreement). The person receiving care can either be excluded from the household or included in the household, whichever is more beneficial for the applicant household. If an adult receiving care is excluded from the household, the room(s) used exclusively by the adult in custodial care will not be included in calculating the number of rooms in the residence. If the adult receiving custodial care is included in the household, the income related to their care must also be included and all rooms in the household can be included.

In both situations described above, the care provider could be related or unrelated to the person they provide care for.

Nursing Home Clients

If a person is living in a long-term care facility/nursing home permanently, they would not be included in the household. Their income would be counted if it is received by the household member applying. If the person is in a nursing facility for temporary skilled rehabilitation (after a hospital stay, etc.), the person and their income would be counted.

If the person applying is required to pay a mandatory amount of the former household member's pension, Social Security benefit, or other fixed income to the facility for a person

who is expected to stay at the nursing home permanently, the mandatory payment to the nursing home can be excluded if verified. An example of acceptable documentation would be a statement from the nursing home stating the payment amount. If documentation is verified, the amount of the mandatory payment can be entered as an expense to reduce the household's countable income.

Foster Care for Minors

Payments received by a home provider for foster care of a minor, made by either a state or tax-exempt placement agency, are reimbursements for the care of the foster individual and are not counted as income in determining income eligibility.

This regulation (IRS code) is specific to households with up to five individuals over age sixteen or up to ten individuals under age sixteen. The foster care individuals must reside in the provider's home. The foster care individual is not included as a household member and the rooms used exclusively by the foster care individual(s) will not be included when calculating the number of rooms in a residential unit.

The total number of foster care individuals and the documentation of any foster care payments must be submitted with the application. If the payments do not document the names of individuals, documentation of foster care placement must be provided (e.g., copy of the state foster care certification).

Students

Students should only be included as a household member if they reside in the home full-time. If a student lives away from the household during the academic year they should not be counted as a household member. Any college or university student who is residing in the household should be included as a household member and their income should be counted. A student can only be listed as a household member on one application during any one FAP program year.

Foreign Students

Foreign students who are in the United States on a non-immigrant student VISA (Immigration and Naturalization Services, certificate I-20A-Visa Type/Class F1 or J1) and any of their dependents (Class F2 or J2) are not eligible for the FAP.

Qualified Noncitizens

As per federal law, US citizenship or lawfully admitted non-citizen status is a requirement to receive FAP. All lawfully admitted non-citizens, regardless of when they entered the United States, are eligible to receive FAP benefits if they meet all other eligibility requirements.

A qualified lawfully admitted noncitizen is any one of the following:

- (i) A non-citizen lawfully admitted for permanent residence as an immigrant under the Immigration and Nationality Act (the “Act”) as defined in PRWORA.
- (ii) An asylee granted asylum under section 208 of the Act.
- (iii) A refugee admitted to the United States under section 207 of the Act.
- (iv) A non-citizen paroled into the United States under section 212(d)(5) of the Act for a period of at least one year.
- (v) A non-citizen whose deportation is being withheld under section 243(h) of the Act as in effect prior to April 1, 1997, or whose removal is being withheld under section 241(b)(3) of the Act.
- (vi) A non-citizen granted conditional entry under section 203(a)(7) of the Act as in effect prior to April 1, 1980.
- (vii) A non-citizen who is a Cuban or Haitian entrant; or
- (viii) A non-citizen who (or whose child or parent) has been battered or subjected to extreme cruelty in the United States and otherwise satisfies the requirements of 8 U.S.C. §1641(c).

A noncitizen who is eligible due to their status as a lawful permanent resident (LPR), refugee, asylee, or other immigration status must provide documentation to show eligibility. Below are some examples of documentation that would indicate eligibility as a qualified noncitizen:

- I-551 Permanent Resident Card (commonly called ‘Green Card’)
- Passport that is unexpired and stamped I-551 or LPR
- I-94 or I-94A Arrival Departure Form with stamp indicating any of the below:
 - Admission for LPR
 - Amerasian LPR (AM-1, AM-2, AM-3, AM-6, AM-7, AM-8)
 - Asylee, Asylum – or marked showing admission under Section 208
 - Cuban-Haitian Entrant – may be coded CU6, CU7, or CH6

- Parolee or Parole, HP – Humanitarian Parole, PIP – Public Interest Parole
- Refugee – or marked showing admission under Section 207
- Temporary I-551
- Admission for at least one year under 203(a)(7)
- Admission for at least one year under Section 212(d)(5)
 - Must show a year or more to meet requirement
- I-327 Lawful Permanent Resident Travel Document
- I-512 Authorization for Parole indicating applicant for adjustment status
- I-571 Refugee Travel Document
- I-688B Employment Authorization Card coded as any of the below:
 - 274a.12(a)(3)
 - 274a.12(a)(5)
 - 274a.12(a)(10)
 - 274a.12(c)(9)
- I-766 Employment Authorization Card marked A3 or A5 or A10
- I-797 Appointment Notice of Action from US Citizenship and Immigration Services
- Grant letter from Asylum Office of US Citizenship and Immigration Services
- Receipt from USCIS indicating an I-90 application to replace LPR card
- Any verification from the INS, DHS, immigration judge, or other authoritative document
- Rare but also accepted are certain noncitizens as defined in 8U.S.C § 1641(c) who (or whose child or parent) has been battered or subjected to extreme cruelty in the U.S.
 - Collateral contacts with persons or agencies such as school counselors, health professionals, social service agency personnel, clergy, police or courts. The CAA must request an affidavit from the person or agency that confirms the noncitizen’s claim of abuse.

An individual with a Qualified noncitizen status should be counted as a household member when determining FAP eligibility.

Ineligible Noncitizens

Ineligible household members should still be added to the household, but should be listed as “Ineligible Alien” in the Application Members section of ECOS. Income from an ineligible noncitizen household member must be documented and included as household income. The ineligible noncitizen is not counted as a household member in eligibility calculations.

8. ENERGY EMERGENCY GUIDANCE

The New Hampshire Fuel Assistance Program procedures are intended to ensure that low-income households have access to services in a timely manner and access to emergency services on an immediate basis to prevent any household from experiencing a life-threatening hardship due to an energy emergency. The FAP definition of a response to an "energy emergency" is drawn directly from the federal Low Income Home Energy Assistance Act, as amended, 42 U.S.C. 2604.

The program shall be administered by public or nonprofit entities that have experience in administering energy crisis programs under the Low-Income Energy Assistance Act of 1980 or experience in assisting low-income individuals in the area to be served, the capacity to undertake a timely and effective energy crisis intervention program, and the ability to carry out the program in local communities. Upon receipt of the federal grant award and opening of the program, typically around December 1, the program shall:

- Prevent the loss of home energy when the applicant is at imminent risk of losing heat due to low fuel amounts, an impending disconnection, or an eviction notice if heat is included in rent. No later than 48 hours after a household applies for energy crisis benefits, the CAA will provide some form of assistance that will resolve the energy crisis if such household is eligible to receive such benefits and is facing an energy emergency but not a life-threatening situation.
- Restore home energy if the applicant has no heat. No later than 18 hours after a household applies for energy crisis benefits, provide some form of assistance that will restore the use of home energy if such household is eligible to receive such benefits and is in a life-threatening situation.
- Require each entity that administers such program to:
 - a) accept applications for energy crisis benefits at sites that are geographically accessible to all households in the area to be served by such entity; and
 - b) provide low-income individuals who are physically infirm with the means to submit applications for energy crisis benefits without leaving their residences or traveling to the sites at which such applications are accepted.

An energy emergency requiring a response within 48 hours after application may include applicants with low-heat, utility shut-off, or rental eviction.

A life-threatening energy emergency requiring a response within 18 hours after application will include applicants with no heat and may include applicants who are homeless.

At no time during the application process should a household go from an energy emergency to a life-threatening situation due to a delay in processing of an application.

All emergency applications must document the dates and times of the initial applicant contact, application, completion, certification, and authorization of emergency assistance.

If an applicant is experiencing an energy emergency, the following procedures will be followed:

1. An applicant in an energy emergency will have the opportunity to apply for fuel assistance within the next business day of the initial contact. The applicant in a life-threatening energy emergency will have the opportunity to apply for fuel assistance on the same business day as the initial contact.
2. The application for an energy emergency will be given priority. If eligible, notification will be made to the applicant's vendor immediately to authorize an emergency delivery or to guarantee payment in the case of a utility disconnection notice. Vendor confirmation of the notification must be documented.
3. If ineligible, the applicant will be notified and referred to an appropriate resource.
4. All eligible energy emergencies must be documented by dates and times of initial applicant contact, application, completion, certification, and authorization of emergency assistance.

Energy Emergency by Fuel Type

Oil and kerosene:	1/4 tank or less
Propane:	20% or less
Wood/Pellets/Wood Fuel:	Less than one week's supply
Metered Utility:	An active disconnect notice
Heat included in the rent:	Has been served with an eviction notice

Life-threatening Energy Emergency by Fuel Type

Oil and kerosene:	No fuel or canning it (i.e. using diesel fuel)
Propane:	No fuel
Wood/Pellets/Wood Fuel:	No wood supply
Metered Utility:	The service has been disconnected
Heat included in the rent:	Is either homeless or has been court-ordered to vacate

9. ALTERNATIVE PROGRAMS

Assurance 16

The Federal Low Income Home Energy Assistance Program (LIHEAP) was reauthorized by Congress in the spring of 1994. In the reauthorization, Congress allowed new uses of "program" money up to 5% of the overall grant. The New Hampshire Fuel Assistance Program uses up to 5% of its available grant for Assurance 16 activities, which are specified by federal law to be:

- Counseling to promote self-sufficiency (case management - fiscal and energy related)
- Needs assessments
- Intervention on behalf of qualified households with energy suppliers

The primary goal of Assurance 16 is to work with a small percentage of FAP-eligible households to reduce or eliminate the need for the FAP or other assistance programs. The secondary goal is to target households with members who are elderly, disabled, or with children under the age of six that do not have sufficient means to provide for a healthy home environment and who may have artificially low home energy bills. The final goal is to help low-income people develop positive relationships with energy vendors.

The NH FAP Assurance 16 program provides self-sufficiency counseling to households that have required an expedited FAP application due to a home energy emergency (see section 8. Energy Emergency Guidelines). These households are encouraged to apply for the FAP and for other assistance in a timely manner to alleviate both special delivery charges and health and safety issues in the household.

Each CAA is required annually to submit an Assurance 16 proposal that demonstrates how the CAA plans to execute the provisions of Assurance 16. The proposal should be based on a year-round program, operating beyond the normal FAP year. The authority to use program money for this purpose is contingent upon the receipt of the Assurance 16 Plan proposal. The proposal must match the Assurance 16 activities that are being performed.

Each CAA will also provide a report on a regular basis, as specified by Federal and State requirements, which shows:

- How funds were spent
- Number of households achieving self-sufficiency
- Number of households reducing dependency on the FAP
- Number of households denied benefits

The Senior Energy Assistance Services (SEAS)

The Senior Energy Assistance Services program funded by the New Hampshire Department of Health and Human Services, Bureau of Adult and Elderly Services provides energy assistance in the form of a \$270.38 benefit to the primary heating source for deliverable fuels, electricity, natural gas, or wood for households with a member aged 60 or older and who is not eligible for the NH Fuel Assistance Program due to being over-income for the normal FAP benefit.

To qualify for a SEAS benefit, applicants must complete a FAP/WAP application and be found ineligible for FAP/WAP benefits by regular program guidelines. The CAAs must determine eligibility for SEAS through need or hardship, which is to be documented by the CAA.

CAAs must use the specific SEAS Reimbursement Request for these funds and provide accompanying documentation to NH DOE with household and expenditure information.

Supplemental Benefit Program

When funds are available, New Hampshire's Fuel Assistance Program may include a Supplemental Benefit to provide additional assistance to previously certified eligible households. This benefit would be based upon several factors including, but not limited to, the availability of funds, the number of applicant households, the increased cost of home energy, and the development of operating procedures specific to this programmatic component.

10. APPLICANT RIGHTS AND RESPONSIBILITIES

Confidentiality

It is of the utmost importance that applicants are guaranteed complete confidentiality regarding information disclosed to all persons involved in the administration of the FAP.

The applicant agrees to a release of information when completing and signing the FAP application form. This release is specific to FAP and includes the following only:

- Information necessary to establish eligibility for the FAP
- Information necessary to determine the amount and type of assistance
- Information necessary to perform program evaluation and analysis
- Sharing of information with the NH Electric Assistance Program and Weatherization Assistance Program for purposes of eligibility for that program

All other sharing of information requires an additional specific release signed by the applicant or other household member or a legal subpoena.

Personally Identifiable Information

Information that can be used to identify a particular person or household is known as PII – Personally Identifiable Information. This includes a person's name, SSN, date of birth, and address. An important component of ensuring confidentiality is adopting best practices for keeping PII safe. CAAs should have measures in place to protect the accidental transfer of this information. This includes policies for physical and electronic information. Some examples:

- Only print information with PII when necessary
- Physical files containing PII should be secured
- Limit the use of PII in email by referencing application numbers or initials
- Encrypt any emails that must contain PII
- Prevent access by creating strong passwords and locking computer screens when away

Complaints

If an applicant believes there has been a violation regarding their data and wishes to share concern with how their information has been disclosed, they should contact the FAP director at the CAA where they applied. There is no penalty for filing a complaint. Should the applicant feel their concern is unresolved at the CAA, they can contact the NH Department of Energy at 603-271-3670 or via email at fuelassistance@energy.nh.gov.

Appeal and Fair Administrative Hearing Procedures

All Fuel Assistance Program (FAP) applicants who have been denied, who question the FAP benefits provided, and/or question the timely processing of their application are entitled to appeal the decision, which may include a Fair Administrative Hearing. All applicants/ will be provided with information regarding the appeal process and the FAP **Fair Administrative Hearing Procedures (Attachment M)**. The CAA must provide written notification of either the denial of benefits or the benefit determination to all FAP applicants.

The written notification to FAP applicants who are denied benefits must include the following:

- A brief statement of the reason(s) for denial of benefits
- A brief explanation of the applicant's right to appeal process
- A brief explanation of the appeal and Fair Administrative Hearing process

An applicant is entitled to appeal the FAP benefit determination for any of the following reasons:

- Application has been denied
- Application was neither denied nor approved within 60 days of the application date during the period of time the program is open (typically Dec 1 – April 30)
- Benefit amount is less than what the applicant believes should have been awarded
- The benefit amount or the duration of the benefit is less than what the written CAA notification originally identified

A FAP applicant may appeal the determination of benefits by contacting the CAA FAP Director and requesting a review of the application within 30 days of receiving the determination letter. The CAA FAP Director must meet with the applicant in-person or via a virtual/phone meeting within 10 days of the applicant's request for an appeal.

During the meeting between the applicant and the CAA FAP Director, the applicant will have an opportunity to express any concerns and the CAA FAP Director will have an opportunity to review and attempt to resolve the dispute. The CAA is responsible for documenting the results of the meeting. The documentation must contain information relative to the eligibility requirements or benefit determination.

If the applicant is not satisfied with the outcome of the meeting, the CAA FAP Director must next refer the applicant to the NH DOE FAP Administrator for an additional review. The CAA FAP Director must communicate the history of the appeal, including the documentation of their meeting with the applicant. The NH DOE FAP Administrator must meet with the applicant in-person or via a virtual/phone meeting within 10 days of the applicant request for a second review of the application.

If the applicant is not satisfied with the determination of FAP benefits after discussing the issue with the CAA FAP Director and the NH DOE FAP Administrator, the applicant may request a Fair Administrative Hearing. An applicant must request a Fair Administrative Hearing with NH DOE within 30 business days of the exchange with the NH DOE FAP Administrator.

The NH DOE Fair Administrative Hearings will meet the following standards:

- All hearings shall be held in a location reasonably convenient to the applicant.
- The hearing officer shall be a NH DOE employee who was not involved in rendering the challenged action or decision.
- The NH DOE hearing officer shall review the applicant CAA file prior to the hearing. The hearing officer shall review the applicant file prior to the hearing, including:
 - a) FAP application, including supporting household and income documentation
 - b) Written notification to the applicant of denial or any other contested decision
 - c) Notes and/or documentation containing information relied upon by FAP staff in making the decision to deny benefits or to take the contested action
- The hearing will be recorded by NH DOE and the decision will be based upon the record and any relevant evidence and information introduced during the hearing.

The applicant is entitled to:

- Review CAA documents prior to the hearing. NH DOE will ensure that the applicant is provided with this option in a timely manner.
- A copy of the current FAP Policy and Procedures Manual. The manual is available online at the NH DOE website, but the NH DOE will provide a printed copy of the manual if it is requested by the applicant.
- Request an interpreter to be provided and funded by NH DOE.
- Bring a representative to accompany him/her to the hearing; however, NH DOE is not required to provide or to pay for such a representative.
- Present oral testimony, a written statement, and/or other relevant evidence.
- Present witnesses and cross-examine witnesses.

The NH DOE will adhere to the following requirements:

- The applicant has 30 days from the applicant's meeting with the NH DOE FAP Administrator to request a hearing in writing.
- The NH DOE will conduct a hearing within 20 business days of receipt of the written request.

- The NH DOE will make a written decision within 10 business days of the hearing. The written decision will contain a statement of reasons in support of the decision and will refer to the evidence relied upon regarding the decision.
- Strict rules of evidence will not apply to the conduct of the hearing.
- All written correspondence from NH DOE to the applicant/client shall be sent via the U.S. Postal Service with a return receipt requested.

If the applicant has requested a Fair Administrative Hearing, the CAA will hold funds equal to the benefit in question in reserve, pending the outcome of the Fair Administrative Hearing.

11. FRAUD PREVENTION AND RESPONSE

Fraud Prevention and Reporting

Fraud is an event of suspected intentional deception, omission, or concealment made for business or personal gain, to assist or harm others and/or to misuse program funds. CAAs must have internal controls to take reasonable steps to prevent fraud by applicants, employees, and energy vendors. This includes but is not limited to:

- Separation of duties for application intake, data entry, verification and certification, and benefit payments
- Self-monitoring activities to reduce, find, and correct errors that may occur during intake, certification, and fiscal activities
- Ensuring policies are in place regarding how fraudulent claims will be handled
- Taking action when credible reports of fraud are received

If any CAA employee or FAP applicant suspects fraud they should make a report to either the FAP Director at the CAA or directly to the NH Department of Energy. This may be a concern about misinformation from applicants or any concerns about fraud by any CAA staff. It could also include any concerns about fraud or abuse by their energy vendor in regards to their FAP benefit, such as not crediting the entire benefit to the account.

Fuel Assistance vendors sign an agreement in order to participate in the program. They agree to keep customers' participation in the program confidential, to not treat customers adversely because of the assistance and to not discriminate in the cost or related services for any customers receiving FAP assistance. They also agree to apply any FAP benefit appropriately and to maintain accurate records. If anyone is concerned that a vendor is not meeting these requirements, they should make a report to either the FAP Director at the CAA or directly to the NH Department of Energy.

Conflict of Interest

Any application for a current CAA employee, relative of a CAA employee, former CAA employee, or a friend of that CAA employee shall be reviewed and approved by a staff person at a supervisory level or higher. Staff members should not be involved in the processing of an application for family members or friends with whom they have an established relationship.

Fraud or Misinformation in Applications

In signing the FAP application, the applicant agrees to the following statement found under **Release and Conditions** on the application:

By signing this application, I acknowledge that I have read and understand all the terms and conditions outlined in the program requirements and agree to comply with all rules and regulations set forth by the program administrators. I confirm that all members of the household are listed along with all sources of income. I authorize the Fuel, Electric, and Weatherization Assistance Programs to contact any necessary third party to collect and verify household income and energy usage. I authorize the verification of all information provided and consent to the collection, storage, and processing of my personal data for the purpose of program evaluation and reporting.

I hereby attest under penalty of perjury that all information provided in this application for the program is true, accurate, and complete to the best of my knowledge. I understand that if I knowingly give inaccurate or incomplete information pertaining to my eligibility for the program(s), I am breaking the law and can be prosecuted; conviction may result in imprisonment and/or fine. Furthermore, I may be subject to administrative penalties which may include denial of eligibility and/or repayment of the assistance I received.

Misrepresentation may occur during the application process because of misunderstandings or ignorance. Third party information to the CAA may also conflict with what the applicant has stated on the application.

A notification of potential fraud might come from a CAA employee, the NH DOE, or a member of the public. Regardless of the source, the FAP Director/Manager should immediately act when informed of potential fraud on an application, including any conflicts with:

- Third party information
- Documentation provided
- Verbal information provided by the applicant

Since a discrepancy may be the result of unintentional misinformation or misunderstandings, CAAs should follow the review processes outlined below when a discrepancy in the application has been identified. The CAA will hold funds in the amount of the benefit in question in reserve pending the outcome of the review process.

During the application process, the CAA shall:

1. Contact the applicant, either in writing or over the telephone, requesting the applicant's assistance and cooperation in providing supplementary support or clarification of information contained in the application.
2. Request any additional documentation from the applicant. The CAA will notify the applicant if NH DOE is informed of the situation in question.
3. Place the approval process in a pending status while further review takes place. The CAA review process will not exceed 30 days.
4. Obtain further information and clarification regarding the application.
5. Resume the application approval process if the CAA determines that no further review is necessary or that the information received has been clarified to its satisfaction.
6. Deny the applicant as set forth in Section C below if, based upon the information received and further review, the CAA determines that the application cannot be approved.

If a FAP client has already been enrolled in the program and received benefits and the CAA receives additional information that could alter the client's eligibility for the program or the benefit amount, the CAA shall:

1. Contact the applicant, either in writing or over the telephone, requesting the applicant's assistance and cooperation in providing supplementary support or clarification of information contained in the application.
2. Notify the NH DOE Fuel Assistance Program Administrator prior to any determination. The NH DOE Fuel Assistance Program Administrator may participate in the review process.
3. Send a letter to the client informing them that their eligibility is in question and that fuel assistance benefits may be suspended pending a review if the client does not respond to the request for information or if the response is not satisfactory. The letter must clearly identify the reason(s) for a suspension of benefits. A copy of the letter will be sent to the NH DOE FAP Administrator.

4. The CAA FAP Director will telephone the client's vendor stating that fuel assistance benefits for the client have been suspended until further notification. The CAA is responsible for confirming that information in writing to the vendor. The client will receive a copy of that letter. Unless the vendor has information pertinent to the review, the reason(s) why the client's benefit is suspended is not to be disclosed.
5. Sufficient funds will be held in reserve by the CAA pending the outcome.
6. The CAA FAP Director will review all information with respect to eligibility and/or possible fraud or willful misrepresentation. The review process may include further clarification from the client.

The client may be subject to denial, disqualification, or termination of FAP benefits when:

1. The client fails to respond or cooperate in the reassessment of the application in question.
2. Evidence resulting from the review process confirms either that the client is ineligible, or the existence of fraud or willful misrepresentation. The NH DOE's FAP Administrator must be involved in the decision-making process prior to the final determination.

Written Notification must be sent with the denial, disqualification, or termination:

1. The client shall be provided with a written notification of the denial of the application, disqualification, rescission of approval, or termination of assistance.
2. CAA FAP Director/Manager will notify the vendor that benefits have been terminated.
3. The written notification will include notice of the Fair Administrative Hearing process.

Restitution

1. The CAA shall make every effort to affect a voluntary restitution of those funds (payments) expended on behalf of an ineligible client.
2. The CAA may choose to initiate court action should an applicant refuse or fail to comply with a request for voluntary restitution.

3. The CAA will not be held liable for payments made on behalf of the ineligible applicant, provided that all procedures identified in the Fuel Assistance Program Policy and Procedures Manual have been properly followed.

A perceived incidence of fraud by a FAP applicant must be confirmed by evidence of deliberate and willful intent to defraud. If the applicant is found responsible for fraud, they are not eligible for the program the following program year. The NH DOE will refer cases where there is evidence of fraud or willful misrepresentation to the NH Attorney General's Office.

12. PROGRAM MANAGEMENT

This section is intended for those who have a leadership role in managing the Fuel Assistance Program at their CAA.

Communication with NH DOE

Each CAA will provide contact information for staff working on various aspects of the program management at their agency. Contact information will be requested by the NH DOE, but updated information should be provided when changes occur at the CAA in order to keep access to ECOS updated. CAAs should identify which staff at their agency should be contacted regarding various program aspects, including contracts, budgets, software updates, and weekly and/or monthly reimbursement requests. The NH DOE will use this information to identify the correct CAA staff members to receive communications.

When additional guidance is needed to provide clarification on a policy or procedure, the NH DOE will utilize a formalized FAP Information Memorandum (IM) process to communicate to the CAAs. IMs will be specific to a program year. At the close of each program year, IMs from the program year will be incorporated into the Policies and Procedures Manual, where appropriate. At the beginning of the program year, a communication will be issued to clarify the status of the prior program year's IMs, namely whether they remain active as stand-alone IMs, if they have been incorporated into the Policies and Procedures Manual, or if they have been discontinued.

All IMs must be shared with FAP staff and retained as an administrative supplement to the FAP Procedures Manual.

Waivers

This manual is designed to provide the framework for the comprehensive administration of the Fuel Assistance Program. It is not intended to cover every conceivable situation that may arise, but rather to be used as a tool for evaluating program decisions on the administrative, direct service, and applicant/client levels when and if a problem arises. CAA FAP Directors/Managers are encouraged to use the waiver process when they determine that a program policy or procedure, or lack thereof, causes undue hardship for an applicant.

To request a waiver of a program policy or procedure, the CAA FAP Director (or designated staff person) must send an e-mail to the NH DOE FAP Administrator and designee(s) with a brief description of the circumstances requiring the waiver request. The email subject line should

include the word waiver, applicant initials, and note identifying the request. As an example, the subject might be, "Waiver - AR No Landlord Form" or similar. All waiver requests should include the following information:

- Applicant initials only (to protect personal information)
- Application ID
- Household size
- Number of household members age 60 or older, under age 6, or disabled
- Benefit amount (if waiver will change the benefit, provide new amount)
- Brief description of the waiver being requested
- The email should also include the statement below:
 - *I certify that the information in this waiver request is true and when applicable, all expenses have been documented with supporting documentation included as part of the FAP PY XX file for this household.*

Any related documentation should be uploaded to ECOS to review – not sent via email. The NH DOE FAP Administrator and designee should be emailed and contacted by telephone if the requested waiver is for a household experiencing an energy emergency. Email and phone message should clearly state if this is an emergency so the NH DOE staff can prioritize response.

Supporting documentation may be requested before a waiver is approved or denied. The NH DOE FAP Administrator or designee will provide a determination or request for additional information or supporting documentation to the waiver request by e-mail within 72 hours. In the event additional information or supporting documentation is requested, a determination will be made within 72 hours of receiving all said information. The waiver decision must be documented in ECOS; NH DOE staff will add a Case Note to the application in ECOS to meet this requirement. A waiver request may also be granted following a Fair Administrative Hearing.

By federal law, no household may receive a waiver if the total gross household income is greater than 60% of the current State Median Income guidelines. This means waivers for households over the income guidelines cannot be considered if the FAP eligibility income guidelines are already set at 60% State Median Income.

Unusual Emergencies

A waiver may also be granted in the case of an unusual emergency such as the result of an "act of nature" such as fire, hurricane, or flood that may force relocation or homelessness, where no other assistance is available from public or private resources or from the community. This provision allows crisis assistance to be provided in the form of:

- Payment towards a security deposit for an income-eligible household that is homeless in order to secure housing (in which heat is included in the rent), thereby gaining access to ongoing FAP benefits
- Payment towards a security deposit required by a utility company prior to connection of service towards which additional FAP benefits may be paid (Regulated utility companies in NH will waive the security deposit once a household is deemed eligible for a low-income assistance program. Requests should be made to municipal utilities to see if the municipal utility would do the same.)

Outreach

Coordination with the CAAs to implement a full statewide outreach plan for reaching vulnerable households is important when delivering comprehensive services to the low-income population of New Hampshire. This process may include the utilization of various media and social service agencies. Each CAA shall submit a detailed plan to NH DOE of all activities to be performed for the purposes of outreach prior to the start of each program year on October 1.

The plan may include but is not limited to:

- Generating a mailing list of the previous year's clients for the purpose of disseminating FAP information.
- Using mass media and related outlets such as television, radio, newspapers, internet, social media and community meetings to publicize the program.
- Mailing the **Vendor Agreement (Attachments G and H)** and program information to vendors.
- Distributing program information to appropriate community agencies, vendors, and other CAA programs.
- Opening outreach sites and conducting home visits when necessary.

The NH DOE shall provide the following services:

- Contacting agencies that publish newsletters for the purpose of soliciting their help in disseminating FAP information.
- Developing press releases for distribution to major radio and TV stations and newspapers throughout the state.
- Publishing information on available social media platforms.
- Apprising CAAs of any and all pertinent program information prior to its release to the general public.
- Participating in public speaking engagements as requested.

Authorization to Spend

FAP funds are contracted to the CAAs but are available only as the federal funds are awarded to the State. The State gives authorization to the CAA to spend funds by the issuance of the **Authorization to Spend (Attachment I)** only after contracts are approved by Governor and Executive Council and the federal funding has been received by the state of New Hampshire.

Over-awarding (aka Over-obligating)

In the course of the program year, a CAA may reach the maximum level of the original Authorization to Spend, and it may become necessary to make a request to NH DOE for approval to provide additional program funds.

The CAA must receive prior authorization to spend additional funds from the NH DOE FAP Administrator and must follow the following procedures:

1. The CAA FAP Director will contact the NH DOE FAP Administrator to discuss current program status which will include past program history, current applications in process, appointments in advance as well as projected program activity.
2. THE NH DOE will provide a written decision on the approval or denial which will be sent to the CAA FAP Director.

A CAA that over-spends program funds without prior written approval may be required to use administrative funds to cover the amount of unapproved funds.

Reallocation

NH DOE may reallocate unobligated program funds when an imbalance in program fund availability occurs between CAAs. An imbalance in program funds occurs when CAA "A" has unspent funds above the amount needed to fund eligible household benefits, while CAA "B" has unspent funds below the amount needed to fund eligible household benefits. This reallocation will be executed by the NH DOE with advanced notice.

13. BENEFIT NOTIFICATION AND PAYMENT PROCEDURES

Benefit Notification

Enrolled applicants are notified by a **Benefit Notification Letter** that they were enrolled in the program. The letter will provide the benefit amount and the name of the vendor (or landlord) who will receive the payment. The Benefit Notification Letter also informs clients of the date that the awarded benefits will expire. After the expiration date, any remaining credit balances are rolled back into the program.

The energy supplier is notified of the benefit amount by receiving a **Vendor Notification Letter (Attachment N)** within 10 working days from the eligible household's application certification date or the opening of the program on/around December 1. This letter will contain the applicant's information, including account information, as well as the amount of the benefit.

Benefit Payments

The CAA will make payment of the full benefit amount within 30 calendar days of the date on the vendor notification letter. Services rendered prior to October 1 of each year by vendors of deliverable fuels are not an allowable payment except in the case of wood deliveries, which may be authorized for delivery after July 1.

If a vendor is refusing delivery due to a prior balance, CAAs may request a waiver for the payment to be applied for deliveries made prior to October 1. No payments may be made beyond the final payment date established at the end of each program year without an approved written waiver from NH DOE.

Transfer and Sale of Benefits

The FAP benefit may not be sold, released, or otherwise transferred by the recipient or the energy supplier. Only the CAA may authorize a transfer of the benefit from one vendor to another when the transfer is necessary to allow the applicant to use the benefit and the transfer is consistent with all FAP guidelines.

Change of Vendor or Address / Transfer of Benefit

Transfer of benefit amounts will be limited to any of the following situations:

- A household moves and their vendor does not serve their new area of new fuel type
- A household moves and now has heat included with their rent
- A household has a change in heating system and their chosen vendor does not serve this fuel type (e.g. a household receives weatherization assistance and a new heating system)
- A household's chosen vendor is refusing to serve the household
- There is another significant circumstance that justifies the change
 - FAP manager/director or designee approval required

If a client moves to a new address but continues to utilize the same vendor for their energy needs, the benefit can remain on the applicant's account.

If a household with heat included in rent moves before the full benefit is applied to rent, the landlord is expected to refund directly to the applicant any amount not already applied to rent owed.

If a vendor sends a refund to the Community Action agency, the agency can reissue the remaining amount of the benefit to the household if they continue to reside in New Hampshire and continue to have a documented home-heating responsibility. A household would submit a Change of Address/Vendor form along with documentation of their new heating vendor. The funds can then be reissued to the new vendor. Benefits can only be reissued to households residing in an eligible residence.

If a vendor refund is for a household who moved from a residence with a direct heating cost to a residence with heat included, the remaining benefit can be reissued either as a direct payment to the applicant or to their electric vendor if the account is in a household member's name.

If there is a change in household composition, the benefit will stay with the original dwelling unit. If any member of the original household is in the original residence, the benefit stays with the dwelling. If all household members move, the benefit will follow the applicant.

If the household does not meet any of these criteria, the refund should be submitted to the NH DOE (see section on benefit returns).

Heat Included in Rent Payment

For applicants whose heat is included in the rent, a Landlord Verification form (**Attachment J**) must document the amount of the rent per month and must have a signature from the property owner/landlord that signifies they have reviewed the agreement on the form. As the agreement on the Landlord Verification form outlines, the property owner agrees to apply the full benefit amount to rent, reducing the rent by the amount of the payment. Should the tenant move out before the full amount of the benefit is utilized, the owner agrees to refund any unused portion of the benefit to the tenant directly.

At least every other year, a valid W-9 form should be requested from the landlord and kept on file before payments are made to confirm the payee's name and address have not changed.

Direct Payments

Direct payments to the client may be made in extenuating circumstances. A waiver is required in these cases, with written approval from the NH DOE FAP Administrator or designee required before payment. EXCEPTION: No waiver is required if the direct payment is going to a FANF household whose cash assistance benefit is paid directly to the landlord.

Other Allowable Payments

Other allowable payments are those that are incidental to the start-up of service including reasonable connection or re-connection fees, delivery fees (including off-hour delivery charges), deposits, tank setting or priming fees, reconnection fees, tariff charges, and other fees related to the start-up of service. Certified eligible homeowner households can choose to have up to \$300 of their benefit pay for furnace repair or cleaning costs by their chosen vendor. This would include payments of up to \$300 toward a service plan that provides annual cleaning/tune-up and potential repairs. The FAP Benefit cannot be used for security deposits, finance charges, or tank leasing or rental.

Deceased Clients

No benefit should be issued or paid to an applicant who is deceased. If an agency learns that an applicant is deceased and they were the only member of their household, the application should be denied and no benefit should be paid. If the benefit has already been awarded and paid for a certified client who is now deceased, expenses incurred prior to and during the 30 days following the date of death can be paid.

14. BENEFIT REFUNDS

Each program year, all deliverable fuel and utility vendors are sent a new Vendor Agreement. This Vendor Agreement includes stipulations regarding when FAP benefit funds must be refunded. These benefit refunds, also known as benefit returns, are then deposited into the CAA FAP account to be reissued or returned to the NH DOE.

Refunds from Vendors to CAA

If an account is closed with FAP benefit funds remaining, the participating vendor must return the funds to the CAA within 30 calendar days. It is not the intent that the customer should be reimbursed by the vendor. However, a customer closing an account may be reimbursed for a previously paid bill with approval from the CAA once it is verified that it is the customer funds, not FAP funds, that are being reimbursed.

For all benefits returned the vendor must identify the household name, case number and program year, and the reason the funds are being returned. The program year listed should be the program year when the benefits were awarded. For example, if a benefit was returned to a CAA in January 2026 (PY 2025-26) but was initially paid to a vendor in January 2025 (PY 2024-25), the correct program year is PY 2024-25. This is important as benefits are governed by different rules during the active contract timeline versus after the CAA contract expiration.

Refunds received during Program Year Active Contract Period

When a benefit is returned from the vendor to a CAA, the funds should be deposited into the CAA's designated FAP bank account. The benefit return should be logged in the ECOS software and, whenever possible, the remaining funds should be credited back to the eligible household. Any refunds received by the CAA but not reissued should still be logged into ECOS. If the funds are for a program year that is still under an active contract, the funds remain available to the CAA. Since FAP contracts are active for two years, this will include the current program year and the program year immediately prior. The refunds will be tracked in ECOS and balanced through the weekly reimbursement process.

Benefits should be reissued to all households who remain eligible. If CAAs have a refund that should be reissued to a household, CAA staff should use all contact information on file to contact the household. The staff should document the outreach attempts in the case notes. If CAAs have attempted to communicate with the applicant with the contact information on file and there is no response after 45 days, the CAA can consider the benefit forfeited. If the full benefit amount was returned, but there is no response from the applicant after 45 days, the

CAA should deny the benefit. If any amount of the benefit was spent, the application should remain enrolled and staff can enter a note in the case that the benefit was not reissued due to lack of communication from the applicant. Should the applicant contact the CAA later, staff can remind them of a statement on their notification letter that reads, “Please notify this agency of any change of address. Failure to do so may result in the cancellation of benefits.”

Refunds received after Contract Expiration

Refunds received for program years that are no longer active are considered expired benefits. The funds are no longer available to the applicant or CAA and must be returned to NH DOE. This year, this includes any benefits issued in PY25 or earlier. Benefits from PY25 or earlier will not be entered into ECOS. If you receive a returned benefit from these expired contract years, you should follow the steps below to return the funds to NH DOE.

Returning Refunds to NH DOE

1. The CAA must send an email to the NH DOE FAP Administrator or designee requesting permission to return the refund. The email must indicate:
 - a. the FAP Program Year
 - b. the applicant case number
 - c. the vendor name
 - d. the amount of the refund
 - e. the reason for the refund
 - f. a clear statement explaining why the refund does not belong to the client
2. NH DOE will reply with written instructions to generate a check to NH DOE in the amount of the refund to be returned, accompanied by the written approval with the pertinent information described above.

Should you have any questions regarding a benefit return, please contact the NH DOE staff.

15. EXPENDITURES AND PROCUREMENT

Fuel Assistance Program Expenditures

Each CAA will be asked to create a budget for the program year and the budget will consist of multiple types of expenditures:

- Program – These funds are limited to direct benefit payment for enrolled households.
- Administrative – These funds are utilized for expenditures categorized as “Admin” expenses, including supplies, rent, mileage, postage, salaries and wages, and more.
- Program Support – These funds are limited to salaries and wages only that are indirect program costs directly related to engagement and enrollment of clients.
- Assurance 16 – These funds can be used for direct client services only - salaries, wages, and fringe benefits for staff who are completing Assurance 16 activities.

CAA contracts will outline how much is available in each of these categories. FAP Directors at the CAAs will submit a proposed budget at the start of each program year utilizing budget templates for Administrative, Program Support, and Assurance 16 funding. The templates will be provided by NH DOE. Reimbursement requests for these three expenditures must be submitted monthly showing the actual cost of administering FAP at their agency.

Because the LIHEAP statute limits the state use for Administrative funds to not exceed 10% in a given program year, the budget templates must list any other Federal resources used by the agency to support FAP. CAAs must submit a request in writing to the DOE before using any other Federal funds (i.e. CSBG) in the administration of FAP. The state must ensure the total amount of Federal funds used to administer FAP must not exceed 10%.

Program Support Funds

Program Support funding may be used for staff time spent on:

- Outreach
- Prescreening and intake activities
- System data entry and updating
- File review
- Intake appointments and interviews regardless of venue, including office, home visits, phone appointments, or other virtual visits
- Associated fringe benefits and payroll taxes associated with the listed activities about

In theory, these activities should closely align with the activities done by front line intake staff.

Non-Eligible uses: Please be aware that program support funding cannot be spent on eligibility determination activities. In other words, staff time spent on certifying applications is not an eligible use. For some agencies we understand that the intake functions and certification functions are performed by separate staff, for others we understand that these functions are performed by the same staff. In those instances, a time management system must be utilized in order to track those activities separately.

In addition, Program Support funding cannot be used to pay for staff for activities that would be considered administrative, such as financial operations, reporting, management, receptionist etc. Please consult with NH DOE staff if you have questions over whether a particular activity would be considered 'Program Support' or 'Administrative' prior to using Program Support funding for that activity.

Regarding indirect costs, Program Support will operate in the same manner as it does for Assurance 16. In other words, you may charge indirect costs for this funding, but it cannot be charged against Program Support.

General Procurement Practices

The CAA must ensure that all procurement of materials, property, or equipment with FAP funds is conducted in a manner to provide open and free competition and to avoid any appearance of impropriety.

No CAA employee, officer, or agent shall solicit or accept gratuities, favors, or anything of monetary value from a contractor or potential contractor.

Proposed procurement actions shall follow procedures to ensure the avoidance of purchasing unnecessary or duplicative items. Where appropriate, an analysis shall be made of lease and purchase alternatives to determine which would be the most economical and practical choice.

Some form of price or cost analysis shall be made in connection with every procurement action.

No CAA may use FAP funds for the purchase of land or the purchase, construction, or permanent improvement of any building or other facility (other than low-cost residential weatherization or other energy-related home repairs).

The CAA shall request and obtain written approval from NH DOE for any agency procurement contract, agreement, or bid proposal prior to its award when:

- The procurement, at least a portion of which is FAP-funded, is expected to exceed \$10,000.
- The proposed procurement is a sole source procurement including when only one bid or proposal is received, in which the aggregated expenditure is expected to exceed \$5,000, of which at least a portion is FAP-funded.
- The CAA fails to comply with its own procurement procedures and with the OMB Circular A-122.

16. MONITORING

NH DOE will conduct program and fiscal monitoring of the CAAs for compliance with Federal and State rules and regulations. NH DOE is available for training and technical assistance if further assistance is needed.

On-site and desk monitoring will occur throughout the program year. Each on-site visit will include an entrance and exit interview between the NH DOE monitor and CAA staff. The FAP Director/Manager or a designee should attend, though others are encouraged to join, including the agency CEO, CFO, or COO. If follow-up or corrective action is required, a time frame for corrective action will be given in this report.

Monitoring of energy suppliers may be done by an NH DOE monitor on a random basis for compliance with Federal and State rules and regulations. NH DOE will issue a written report to the CAAs containing all findings following each monitoring visit of a vendor in their territory.

In the case of failure to adhere to the rules and regulations, the CAA will request training and technical assistance and/or develop a corrective action plan and act upon said plan within an amount of time agreed upon by NH DOE. Upon review and consideration of the corrective action to bring about a resolution, NH DOE will notify the CAA of its acceptance or denial and offer further technical assistance.

Failure to correct any questionable matter will result in the following:

- Non-compliance will be brought to the attention of NH DOE.
- All grant payments to a sub-grantee may be withheld until non-compliance is resolved.
- The NH FAP Administrator or designee will bring the non-compliance to the immediate attention of the Executive Director of the CAA.

The CAA will retain FAP program funds in a specified account and funds cannot be comingled with other funding sources. By the 15th of each month, an updated monthly bank statement for the FAP account must be shared with NH DOE. This monthly bank statement must document any interest earned. The CAA is to spend earned interest on the Fuel Assistance Program.

Monitoring by NH DOE may include but is not limited to:

Intake Site Evaluation

- Adequacy of sites – number of staff and hours covered
- Accessibility of intake via sites and telephone
- Information given to applicants, privacy for applicants
- Politeness/sensitivity and referrals to other social services/organizations

- Privacy and waiting accommodations for applicants
- Compliance with state procedures

Community Outreach and Public Relations

- Type of outreach completed, currently engaged in, and planned for future
- Number of home visits done
- Examples of advertising and publicity

Application and Vendor Payment Monitoring

- Timeliness of intake certifying applications as eligible
- Timeliness of certification with benefit or denial of applications
- Review of denied applications, including over-income applications
- Review of client eligibility
- Fair Administrative Hearing Notice mailed out with Denial Letter
- Examples of letters sent to applicants/clients

Vendor and Landlord Relations Monitoring

- Signed vendor agreements and landlord verification forms
- Timely and accurate payment procedures
- Appropriate correspondence sent to vendors and landlords

Emergency Procedures Monitoring

- Length of time from initial contact until crisis was alleviated
- Types of action (e.g., referral, fast-track emergency application)

LIHEAP Fiscal Monitoring

- Date of most recent fiscal manual
- Frequency of review and/or updates
- Allocation of administrative and/or indirect costs
- Annual financial audit
- Process used by CAA to monitor payments
- Process used by CAA to ensure accuracy and timeliness of required reports
- Spend down of funds – program, admin, and program support
- Advance payments
- Administrative process for paying invoices
- Budgeting and reimbursement requests
- Staff time

Coordination

- Coordination with Weatherization Program

- Coordination with other social services/organizations
- Coordination within CAA

Program Monitoring Reports

NH DOE will provide the subgrantee with a written report within 30 days of each on-site monitoring visit. Each report will consist of an evaluation of the monitoring visit including general comments, notable practices, recommended opportunities for improvement, and any issues of non-compliance. The following definitions may assist the CAAs in fully addressing the issues in the monitoring report:

Issues of Non-Compliance

An issue of non-compliance will be noted where practices are found to not meet the state requirements. An issue of non-compliance is one that is not in alignment with a policy or procedure that is outlined in our NH state manual. The section of the manual outlining the related policy or procedure will be documented along with the specific issues of non-compliance. Sample issues of non-compliance may include not meeting required timeframes for application certification or energy emergency responses or not documenting income according to the manual. Any issues of non-compliance will require immediate attention, including a Corrective Action Plan to be submitted to the NH DOE within 30 days. The NH DOE will respond to all Corrective Action Plan submissions indicating whether or not the NH DOE is satisfied that all issues of non-compliance have been addressed.

Opportunities for Improvement

Opportunities for improvement will highlight areas where there may be an opportunity to enhance or expand a current process or policy to better administer the program. These are not areas out of compliance with the manual, but rather opportunities to improve the effectiveness of the staff or program management through use of best practices. Examples may include recommendations for process improvement, training, or other programmatic components. These are recommendations to consider for implementation that do not require a corrective action plan response.

17. REPORTING

As a federal program, there are many important documentation and reporting requirements for the Fuel Assistance Program. The CAAs are responsible for submitting all required reports to the NH DOE in a timely manner. Reports are expected to be submitted on time, complete and accurate. This section will outline requirements as well as provide descriptions and due dates for the most common requirements. This is not an exhaustive list and requests for documentation may be made from the NH DOE to the CAAs throughout the year.

- **Weekly Reimbursement Request Report:** CAAs are required to submit weekly reimbursement request reports to DOE each Monday by 10am. The report will be submitted via ECOS unless instructed otherwise. This weekly report provides financial information related to program funds awarded and refunds received in the prior week. Upon review, the DOE staff will either approve or reject the request. If rejected, a reason will be provided. Once approved, the CAA will have access to the information needed to provide benefit letters and payments for the households included in that week's report.
- **Outreach Plan and Quarterly Reports** – Each CAA is responsible for creating a plan each new program year that documents the outreach they will provide to their communities. This plan includes information about their outreach center locations as well as planned activities and outreach campaigns. A quarterly report provides updates throughout the year on how the plan is being implemented.
- **Assurance 16 Plan and Reports** – Each CAA utilizing Assurance 16 funding is responsible for creating a plan for how they will implement Assurance 16 at their agency. The agency must identify the Assurance 16 households and provide updates on the outcomes with these designated households (**Attachment O**).
- **Monthly Reimbursement Request Reports** – Each CAA will provide monthly reports on the financial program management. Toward the start of each program year, each CAA will create a proposed budget for the year based on the amount provided in the new program year contract. This proposed budget will include amounts for Administrative, Assurance 16, and Program Support funds. Monthly reimbursement reports will be required for all three. Reimbursement reports will also be required at least once a quarter for any SEAS program reimbursements. Monthly reports are due by the 15th of the following month. The final month of the contract (September) additional time is allotted; CAAs have 30 days to submit this final close out month.

The DOE will provide technical assistance to any CAA having difficulty meeting the reporting requirements. Payments to sub-grantees may be withheld for the following reasons:

- The subgrantee has failed to comply with reporting requirements.
- Discrepancies or inconsistencies in reporting have been revealed through the monitoring of sub-grantee records.
- Program operations or expenditures are in non-compliance with provisions of the contract.
- Continued late and/or inaccurate data in weekly or monthly reporting are noticed.

Outreach Plan and Quarterly Reports

OUTREACH PLANS	DUE DATE
FAP Outreach Plan (New PY): Each CAA shall submit to NH DOE a detailed plan of all activities to be performed for the purposes of outreach prior to the start of each program year.	October 1
Quarter 1 Outreach Activity Report: A report on the outreach activities/events that were held or attended during Q1 (Oct, Nov, Dec) is due.	January 15
Quarter 2 Outreach Activity Report: A report on the outreach activities/events that were held or attended during Q2 (Jan, Feb, Mar) is due.	April 15
Quarter 3 Outreach Activity Report: A report on the outreach activities/events that were held or attended during Q3 (Apr, May, Jun) is due.	July 15
Quarter 4 Outreach Activity Report: A report on the outreach activities/events that were held or attended during Q4 (Jul, Aug, Sep) is due.	October 15

Assurance 16 Plan and Reports

Assurance 16 Spreadsheet (NEW PY): The FAP Emergency Assignment report from the just-completed program year is exported to a spreadsheet documenting the Assurance 16 households to be worked with in the new PY. The number of Assurance 16 households for the new PY must match the number of Emergency households that are indicated on the CAA end of year Emergency Assignments Report.	July 15
Assurance 16 Action Plan/Proposal (NEW PY): Written CAA document stating the plan for implementing A16 at their agency, including activities that they will perform to meet the Assurance 16 requirements. There is an early deadline for any agency A16 plans that are changing substantively from prior year..	July 15 - Early due date for any plans that are substantively different from the prior year A16 plan. October 1 – Due date for any plans that are not substantively different from prior year A16 plan.
1st Assurance 16 Report: Report of July, August, and Sept. Assurance 16 household outcomes is due.	November 1
2nd Assurance 16 Report: Updated cumulative report of all Assurance 16 households is due.	March 1
3rd Assurance 16 Report: Final Assurance 16 report from the recently completed FAP PY documenting all Assurance 16 households is due.	July 1
Assurance 16 Final Spreadsheet: Final Assurance 16 completed spreadsheet from the recently completed FAP PY documenting all Assurance 16 households is due.	July 1

Financial and Monthly Reports

FINANCIAL REPORT	DUE DATE
Proposed Budgets: CAAs are required to submit a budget based on the amounts of the initial program year contract. CAAs will submit a budget for the Administrative, Assurance 16, and Program Support funds. Subsequent budgets will need to be submitted if additional funding is received.	November 1
Monthly Administrative Reimbursement Request Report must be submitted each month, even if the requested amount is \$0. The FINAL year end Administrative RR is due no later than 30 days of the end of the FFY (September 30).	Monthly by the 15 th of the following month
Monthly Assurance 16 Reimbursement Request Report must be submitted each month, even if the requested amount is \$0. The FINAL year end Assurance 16 RR is due no later than 30 days of the end of the FFY (September 30).	Monthly by the 15 th of the following month
Monthly Program Support Reimbursement Request Report must be submitted each month, even if the requested amount is \$0. The FINAL year end Program Support RR is due no later than 30 days of the end of the FFY (September 30).	Monthly by the 15 th of the following month
Monthly FAP Account Bank Statement	Monthly by the 15 th of the following month
Monthly SEAS Reimbursement Request One must be submitted at least once quarterly, even if amount is \$0.	Monthly by the 15 th of the following month
Weekly Program (Benefit) Reimbursement Request Report must be submitted weekly, even if the requested amount is \$0.	Weekly - Mondays by 10:00AM of the following week

Reimbursements that are not submitted by the deadline may be delayed in processing. If the 15th falls on a weekend, the monthly reports will be due the following Monday. If Monday is a holiday, the weekly reports will be due on Tuesday morning. Reimbursement requests must be submitted even if requested amount is \$0.

Typical processing time for reimbursement requests (from submission to reimbursement received) is within one week.

Fuel and Electric Assistance Program Application



Applications for Fuel Assistance accepted until 4/30/27. Electric Assistance applications accepted year-round.

Applicant Name _____ Total Number of Household Members _____
Street Address _____ City _____ Zip Code _____
Mailing Address _____ City _____ Zip Code _____
Email Address _____ Phone Number(s) _____
Preferred Language _____

Office Use Only
Received Date Stamp

Would you be interested in Weatherization Assistance? ☐ Yes ☐ No

Housing

Housing Type ☐ Apartment ☐ Condo ☐ Duplex ☐ Mobile Home ☐ Single Family ☐ Room

Do you ☐ Own or ☐ Rent Monthly Rent or Mortgage Amount \$ _____ /mo
Lot rent or HOA/Condo Fee Monthly Amount \$ _____ /mo
My rent is subsidized - I pay \$ _____ /mo

Renters – check all that apply ☐ Heat Included ☐ Electric Included ☐ No utilities included

of Rooms in Home: Bedrooms ____ Bathrooms ____ Kitchen ____ Living Rm ____ Dining Rm ____

**** Do not include closets/pantries, hallways, unheated attics/basements/porches, etc****

Electric Provider

Electric Company _____ Account Number _____

Customer Name on Electric Bill _____

Do you have a disconnect notice for your electric or gas service? ☐ Yes ☐ No

If heat is included with rent, are you facing eviction? ☐ Yes ☐ No

If yes to either of these two questions, please share date of disconnect/eviction _____ and copy of notice.

Heat/Fuel/Wood Provider

Primary Heat Type ☐ Oil ☐ Kerosene ☐ Propane ☐ Natural Gas ☐ Electric Heat **Don't include space heaters**
☐ Wood ☐ Pellets ☐ Included in Rent

Secondary Heat? ☐ No ☐ Yes (Type): _____ **Check if true:** ☐ My fuel tank is shared

Heat/Fuel Provider _____ Account Number _____

Customer Name on Heat/Fuel Account _____

How much fuel do you have currently? _____ (i.e. 2/3 tank of oil, 70% tank propane, 3 cords wood, etc)

Please complete information below about all household members, including yourself, in prior month.

More than 4 people? Use a second sheet.	Household Member 1 Applicant	Household Member 2	Household Member 3	Household Member 4
First + Last Name				
Social Security #				
Date of Birth				
Sex Circle one per person	Male Female Prefer Not to Answer	Male Female Prefer Not to Answer	Male Female Prefer Not to Answer	Male Female Prefer Not to Answer
Race Check one per person	☐ Amer Indian/Alaskan ☐ Asian ☐ Black/African American ☐ Native Hawaii/Pacific ☐ White ☐ Multi-race (2+ of above) ☐ Other	☐ Amer Indian/Alaskan ☐ Asian ☐ Black/African American ☐ Native Hawaii/Pacific ☐ White ☐ Multi-race (2+ of above) ☐ Other	☐ Amer Indian/Alaskan ☐ Asian ☐ Black/African American ☐ Native Hawaii/Pacific ☐ White ☐ Multi-race (2+ of above) ☐ Other	☐ Amer Indian/Alaskan ☐ Asian ☐ Black/African American ☐ Native Hawaii/Pacific ☐ White ☐ Multi-race (2+ of above) ☐ Other
Ethnicity Check one per person	☐ Hispanic, Latino, or Spanish Origins ☐ Non-Hispanic, Latino or Spanish Origins ☐ Unknown	☐ Hispanic, Latino or Spanish Origins ☐ Non-Hispanic, Latino or Spanish Origins ☐ Unknown	☐ Hispanic, Latino or Spanish Origins ☐ Non-Hispanic, Latino or Spanish Origins ☐ Unknown	☐ Hispanic, Latino or Spanish Origins ☐ Non-Hispanic, Latino or Spanish Origins ☐ Unknown
Full Time Student?	If yes, what grade? ____	If yes, what grade? ____	If yes, what grade? ____	If yes, what grade? ____
United States Citizen?	Y N	Y N	Y N	Y N
Legally Disabled?	Y N	Y N	Y N	Y N
Health Insurance?	Y N	Y N	Y N	Y N
Please indicate which household members receive any of the following monthly or annual income sources. Documented proof of income will be required, please see list on page 3 for reference				
Currently Employed? If yes, pay frequency?	Y N Weekly Biweekly Monthly	Y N Weekly Biweekly Monthly	Y N Weekly Biweekly Monthly	Y N Weekly Biweekly Monthly
Self-Employed? (incl farm, rent, side jobs)	Y N	Y N	Y N	Y N
Receiving Social Security/SSI/SSDI?	Y N	Y N	Y N	Y N
Recently Unemployed? (within last 60 days)	Y N If yes, last day worked _____	Y N If yes, last day worked _____	Y N If yes, last day worked _____	Y N If yes, last day worked _____
Receiving Unemployment?	Y N	Y N	Y N	Y N
Receiving SNAP? (food stamps)	Y N	Y N	Y N	Y N
Receiving any type DHHS Cash Assistance? e.g. FANF, TANF, APTD, FAP, etc.	Y N	Y N	Y N	Y N
Earning pension, annuity, interest or dividends?	Y N	Y N	Y N	Y N
IRA/401K Withdrawal within last 365 days?	Y N	Y N	Y N	Y N
Receiving Alimony?	Y N	Y N	Y N	Y N
Receiving Child Support?	Y N If yes, amount is \$_____ per _____	Y N If yes, amount is \$_____ per _____	Y N If yes, amount is \$_____ per _____	Y N If yes, amount is \$_____ per _____
Paying Child Support?	Y N If yes, amount is \$_____ per _____	Y N If yes, amount is \$_____ per _____	Y N If yes, amount is \$_____ per _____	Y N If yes, amount is \$_____ per _____
Worker's Comp, Short/Long Term Disability via employer?	Y N	Y N	Y N	Y N
Receiving VA Cash Benefits?	Y N	Y N	Y N	Y N
Receiving other income or \$\$ support not listed above? Help from family or friends?				

IMPORTANT – Your application will NOT be processed without YOUR SIGNATURE on page 3!

CHECKLIST: In addition to the completed, signed application, please submit copies of the following:

- ☐ Proof of SSN for all household members* (e.g. copy of SS card, tax form) or legal non-citizen status
*If proof of SSN was provided last season (2025-26), it may not be needed again this year
- ☐ A recent, complete electric bill (for Electric Assistance)
- ☐ A recent account statement, fuel delivery slip or utility bill for primary heat source (for Fuel Assistance)
- ☐ Households with heat included in rent must submit a completed Landlord/Housing Verification form
- ☐ Proof of GROSS income for all household members in the month prior to the date you sign application:
 - If employed, provide paystubs for prior 5 weeks or have your employer(s) complete an Employer Verification Form
 - If self-employed, provide most recent tax return – include complete signed 1040 with all schedules & attachments
 - If receiving Social Security, SSI or SSDI, provide Social Security award letter for current year
 - If receiving DHHS Assistance, provide complete copy of most recent decision letter
 - If receiving pension or VA cash benefits, provide proof of total gross amount received in prior month
 - For any retirement withdrawals in past 365 days, provide proof of total gross amount withdrawn in past year
 - For any annuities, interest, or dividends, provide most recent tax return or 1099
 - If receiving unemployment, disability, or worker's comp, provide proof of gross amount for past month
 - If receiving alimony, provide proof of gross amount for past month
 - If paying child support, provide proof of gross amount paid in past month
 - If household has no income, please contact us to request and complete a No or Low Income form
 - Additional documentation may be requested by program staff

○ _____

Release and Conditions: By signing this application, I acknowledge that I have read and understand all the terms and conditions outlined in the program requirements and agree to comply with all rules and regulations set forth by the program administrators. I confirm that all members of the household are listed along with all sources of income. I authorize the Fuel, Electric, and Weatherization Assistance Programs to contact any necessary third party to collect and verify household income and energy usage. I authorize the verification of all information provided and consent to the collection, storage, and processing of my personal data for the purpose of program evaluation and reporting.

I hereby attest under penalty of perjury that all information provided in this application for the program is true, accurate, and complete to the best of my knowledge. I understand that if I knowingly give inaccurate or incomplete information pertaining to my eligibility for the program(s), I am breaking the law and can be prosecuted; conviction may result in imprisonment and/or fine. Furthermore, I may be subject to administrative penalties which may include denial of eligibility and/or repayment of the assistance I received.

I understand that this application is only a request for assistance and assistance is based on the availability of funds. No assistance can be provided until the application is completed and approved. I understand that the Electric Assistance Program benefit is provided to assist our household in making full and timely payments on my electric bill. NH's Fuel, Electric, and Weatherization Assistance Programs prohibit discrimination based on race, color, creed, religion, sex, age, national origin, marital status, sexual orientation, familial status and physical or mental disability.

Applicant Signature _____ **Date** _____

For Office Staff Use Only

Current EAP Case #:	EAP Recert Due Date:	Usage:
Current Tier:	New Recert Return	If recert not due, did client request appointment? Y N

Notes

INCOME GUIDELINES FOR FUEL AND ELECTRIC ASSISTANCE PROGRAMS

INCOME LIMITS BY HOUSEHOLD SIZE

Annual Gross Income		1	2	3	4	5	6	7	8
A - EAP Tier 6	75% FPG	11,970	16,230	20,490	24,750	29,010	33,270	37,530	41,790
B - EAP Tier 5	100% FPG	15,960	21,640	27,320	33,000	38,680	44,360	50,040	55,720
C - EAP Tier 4	125% FPG	19,950	27,050	34,150	41,250	48,350	55,450	62,550	69,650
D - EAP Tier 3	150% FPG	23,940	32,460	40,980	49,500	58,020	66,540	75,060	83,580
E - EAP Tier 2	175% FPG	27,930	37,870	47,810	57,750	67,690	77,630	87,570	97,510
F - EAP Tier 2	200% FPG	31,920	43,280	54,640	66,000	77,360	88,720	100,080	111,440
	60% SMI - Max	48,713	63,702	78,691	93,680	108,668	123,657	126,468	129,278

Monthly Gross Income		1	2	3	4	5	6	7	8
A - EAP Tier 6	75% FPG	998	1,353	1,708	2,063	2,418	2,773	3,128	3,483
B - EAP Tier 5	100% FPG	1,330	1,803	2,277	2,750	3,223	3,697	4,170	4,643
C - EAP Tier 4	125% FPG	1,663	2,254	2,846	3,438	4,029	4,621	5,213	5,804
D - EAP Tier 3	150% FPG	1,995	2,705	3,415	4,125	4,835	5,545	6,255	6,965
E - EAP Tier 2	175% FPG	2,328	3,156	3,984	4,813	5,641	6,469	7,298	8,126
F - EAP Tier 2	200% FPG	2,660	3,607	4,553	5,500	6,447	7,393	8,340	9,287
	60% SMI - Max	4,059	5,309	6,558	7,807	9,056	10,305	10,539	10,773

For 9+ HH members, add the below for each added person:			
For FPG amounts only		Annual	Monthly
A - EAP Tier 6	75% FPG	4,260	355
B - EAP Tier 5	100% FPG	5,680	473
C - EAP Tier 4	125% FPG	7,100	592
D - EAP Tier 3	150% FPG	8,520	710
E - EAP Tier 2	175% FPG	9,940	828
F - EAP Tier 2	200% FPG	11,360	947

FPG amounts updated on 1/16/26

60% SMI amounts updated on 5/28/26

PY27 Fuel Assistance Program Benefit Determination

In NH, the FAP benefit amount awarded to eligible households is based on two factors:

Household Income + **Annual Heating Cost**

The Benefit Matrix is designed so that the highest level of assistance will be furnished to those households which have the **lowest incomes** and the **highest energy costs**.

	Six Income Tiers	Four Annual Heating Cost Tiers
Higher Benefit Amount ↑	A 75% of Federal Poverty Level	\$3,500 or more
	B 75 - 100% FPL	\$1,750 - \$3,499
	C 100 - 125%	\$1,000 - \$1,749
	D 125 - 150%	Less than \$1,000
Lower Benefit Amount ↓	E 150 - 175%	
	F 175% up to 60% SMI	

Below is an example of the Benefit Matrix. Across the top you can see the six income tiers make up six columns. On the left, you can see four rows that match the heating cost tiers.

Deliverable Heat (Oil, Kero, Propane, Wood, Pellets)						
Annual Heating Costs	A	B	C	D	E	F
\$3,500 or more	\$ 2,500	\$ 2,150	\$ 1,825	\$ 1,500	\$ 1,200	\$ 825
\$1,750-\$3,499	\$ 2,350	\$ 2,040	\$ 1,720	\$ 1,410	\$ 1,100	\$ 800
\$1,000-\$1,749	\$ 1,460	\$ 1,270	\$ 1,150	\$ 940	\$ 730	\$ 525
less than \$1,000	\$ 750	\$ 650	\$ 550	\$ 500	\$ 425	\$ 400

As an example: a household with annual heating costs of \$1,700 would get a different benefit amount depending on the household income.

- Less than 75% of the federal poverty amount? Column A - benefit of \$1,460
- Between 150-175% of the federal poverty amount? Column E - benefit of \$730

PY27 Fuel Assistance Program Benefit Determination

How is the heating cost determined?

The annual heating cost is determined using a formula outlined in steps 1 and 2 below.

Step 1 below uses the dwelling type, number of rooms, and the county of residence to determine a dwelling factor.

Step 2 uses a formula including the dwelling factor along with primary heating type, both the cost and efficiency.

Below is an example calculation.

Standard New Hampshire LIHEAP Benefit Determination		
Step 1 - Calculate Dwelling Rooms Factor (Factor * # rooms + degree days)/1,000,000	$(2000 * 7 * 7672) / 1000000$	107.408
Step 2 - Calculate Heating Costs Dwelling Rooms Factor * (\$ per MBTU/Efficiency Rate)	$107.408 * (28.881 / 0.780) = \$3,976.988$	Tier AA
Step 3 - Determine Benefit Tier based on Income	2 Members, \$45,120.00 = 209% FPG	F
Step 4 - Determine Unadjusted Benefit Amount	Heating Cost - Tier AA, Income - F	\$825.00
Step 5 - Apply Fuel Multiplier to Benefit	Oil, $\$825.00 * 1.000$	\$825.00
Step 6 - Apply Heat Included in Rent Multiplier	HIR = No, $\$825.00 * 1.0$	\$825.00
Step 7 - Apply Rounding	$\$825.00 = \825.00	\$825 Final Benefit

Households can choose to submit their actual heating costs over a 12-month period if they wish to use their actual cost of heating.

PY27 Fuel Assistance Program Benefit Determination

The data used in the formula for the 2026-2027 program year is below.

Heating Cost Tiers

Cost Tier	Lower Limit	Upper Limit	
AA	\$3,500.00		Delete
BB	\$1,750.00	\$3,499.99	Delete
CC	\$1,000.00	\$1,749.99	Delete
DD	\$0.00	\$999.99	Delete

Agency Degree Days uses a 5-year average of Heating Degree Days for the county/counties.

Agency Degree Days

Agency	Agency Degree Days	
CAPBM	6610	Delete
CAPHR	5993	Delete
CAPSC	6061	Delete
SCS	6588	Delete
TCCAP	7672	Delete

Save

Dwelling Energy Factor

Dwelling Type	Factor	
Single Family Home	2000	Delete
Modular	2000	Delete
Mobile Home	1800	Delete
Apartment	1400	Delete
Condo	1400	Delete
Duplex	1400	Delete
Room	1400	Delete

Fuel Cost, Efficiency, and Benefit Multiplier

Fuel Type	Cost per MBTU	Efficiency Rate %	Benefit Multiplier %	
Kerosene	35.185	0.78	1.000	Delete
Oil	28.881	0.78	1.000	Delete
Natural Gas	15.000	0.82	0.750	Delete
Coal	14.286	0.75	1.000	Delete
Wood	21.650	0.63	1.000	Delete
Wood Pellet	21.650	0.70	1.000	Delete
Electric	64.706	1.00	0.750	Delete
Propane	42.497	0.78	1.000	Delete
Bio Brick	21.650	0.70	1.000	Delete
Winter Blend	32.033	0.78	1.000	Delete

PY27 Fuel Assistance Program Benefits

Deliverable Heat (Oil, Kero Propane, Wood) Benefits

Annual Heating Costs	A	B	C	D	E	F
\$3,500 or more	\$ 2,500	\$ 2,150	\$ 1,825	\$ 1,500	\$ 1,200	\$ 825
\$1,750-\$3,499	\$ 2,350	\$ 2,040	\$ 1,720	\$ 1,410	\$ 1,100	\$ 800
\$1,000-\$1,749	\$ 1,460	\$ 1,270	\$ 1,150	\$ 950	\$ 730	\$ 525
less than \$1,000	\$ 750	\$ 650	\$ 550	\$ 500	\$ 440	\$ 400

Utility Heat (Electric, Natural Gas) Benefits

Annual Heating Costs	A	B	C	D	E	F
\$3,500 or more	\$ 1,875	\$ 1,613	\$ 1,369	\$ 1,125	\$ 900	\$ 619
\$1,750-\$3,500	\$ 1,763	\$ 1,530	\$ 1,290	\$ 1,058	\$ 825	\$ 600
\$1,000-\$1,750	\$ 1,095	\$ 953	\$ 863	\$ 713	\$ 548	\$ 394
less than \$1,000	\$ 563	\$ 488	\$ 413	\$ 375	\$ 330	\$ 300

Utility benefits are reduced by 25% due to Gas and Electric Assistance Program discounts

Fuel and Electric Assistance Program

Self Employment Information



You are self-employed if you:

- Work for yourself in any capacity. Some examples include running errands, selling goods online, delivery services, lawn care, renting property, or providing services and/or freelance work.
- Carry on a trade or business as a sole proprietor or independent contractor
- Earn rental income from a property (or properties) you own
- Are a member of a partnership that carries on a trade or business

You can be self-employed working full-time or part-time.

Applicants who are self-employed are required to provide all documentation for the prior 365 days of income. Generally, this can be provided with a complete copy of the current year tax return with all schedules included.

A few notes for self-employed applicants:

- Self-employment should be documented through tax statements even if the net profit is negative or \$0. If the losses are greater than the profit, the lowest income will be recorded is \$0.
- Depreciation deductions are not an allowable expense and will be added back into the net profit.
- When a business is operated out of a person's residence, be it owned or rented, staff will be required to use statewide policy to exclude these rooms from household for benefit.

Fuel and Electric Assistance Program

Self Employment Declaration



If you have not filed taxes, you are required to submit this completed self-employment declaration along with documentation of your business income. Please note:

- You must complete all information and sign and date the bottom of the form.
- Along with form, you must present supporting documentation in an orderly fashion. Documents should be organized in date order and, if including deductions, should be clearly labelled.

Person Self Employed _____ Start Date _____

Business Name & Activity _____

Business Address _____

365 Day Period From _____ To _____

For the period indicated above, please provide the following information:

1. **Gross Income** (for sales, services, tips) \$ _____
2. **Minus Cost of Goods Sold** (products you resell) - \$ _____
3. **Equals Adjusted Gross Income** = \$ _____

Deductions – list the totals for any business-related expense for the period indicated above that you would like to see deducted. Please note that you must include documentation (most often in the form of receipts) as proof of these expenses in order to have deductions.

- | | | | |
|--------------------|----------|-----------------------|----------|
| 4. Advertising | \$ _____ | 12. Postage | \$ _____ |
| 5. Bank Charges | \$ _____ | 13. Rent | \$ _____ |
| 6. Car/Truck | \$ _____ | 14. Supplies | \$ _____ |
| 7. Cleaning | \$ _____ | 15. Taxes | \$ _____ |
| 8. Fuel | \$ _____ | 16. Travel | \$ _____ |
| 9. Insurance | \$ _____ | 17. Utilities | \$ _____ |
| 10. Interest | \$ _____ | 18. Wages (employees) | \$ _____ |
| 11. Office Expense | \$ _____ | 19. Other | \$ _____ |

20. **Total Deductions** (add lines 4 through 19) = \$ _____

21. **Net Profit** (line 3 minus line 20) = \$ _____

I certify that the above information is complete, accurate, and true to the best of my knowledge. I will provide additional documentation upon request if necessary. I understand that if I have intentionally falsified any of this information, I could be fined and/or imprisoned.

Printed Name

Title

Phone Number

Email Address

Signature

Date

Instructions on how to complete the deductions section of the Self-Employment Declaration

- **Advertising:** Costs related to advertising business in newspapers, radio, television, social media, brochures, etc, are deductible
- **Bank Charges:** The cost of maintaining a business bank account is deductible (i.e. monthly service charges, check cashing charges, bad check charges, etc).
- **Car/Truck:** There are two methods for determining deductions: Actual Costs and Standard Mileage Rate.
 - Actual Costs: Deduct the actual costs of gas, oil, tolls, tires, licenses, garage rent, parking fees, lease fees, and rental fees. If a car is used for both business and personal use, multiply the actual costs by the percent of time the car/truck is used for business. *A car that is used for 60% of the time for business with \$2,000 annual costs would have a \$1,200 deduction ($60\% \times 2000 = 1200$).
 - Standard Mileage: If using the standard mileage rate, multiply the business related miles by the current IRS rate for a mileage to arrive at the allowable deduction. You may also deduct parking fees, tolls, state and local personal property taxes. Records must be kept showing daily business mileage and a yearly business mileage figure.
- **Cleaning:** The cost of cleaning and janitorial services for business are deductible.
- **Fuel:** Fuel costs relating to gasoline/diesel used for work related equipment other than vehicle (e.g. tractor)
- **Insurance:** The cost of work-related insurance premiums are deductible including premiums for fire, theft, flood, casualty, merchandise, inventory, liability, public liability, malpractice, worker's compensation, state unemployment insurance, use and occupancy and business interruption. Employees' group insurance is also deductible as long as the strict nondiscrimination rules are complied with.
- **Interest:** Any interest paid on business loans, business credit cards, and mortgages for business. Must all be used exclusively for business purposes to be deductible.
- **Office Expenses:** The cost of office supplies used for business are deductible as long as they are used within one year. Cost of rent and utilities associated with business office may also be deductible.
- **Postage:** The cost of postage and shipping for business purposes are deductible.
- **Rent:** The cost to use property for business purposes that you do not own (i.e. cars, tools, property, etc)
- **Supplies:** The cost of incidental supplies and materials used for business (such as tools, office supplies, and equipment) are deductible if they are used within one year.
- **Taxes:** Taxes related to the cost of running business/profession are deductible, including sales, business profits, licenses, regulatory fees, state unemployment payments, franchise, user fees, and property.
- **Travel:** Normal expenses are deductible when traveling for business. Deductible expenses include: airplane, bus and train tickets, operating and maintaining vehicles (refer to CAR and TRUCK section), meals, lodging, and other ordinary and necessary expenses relating to business travel. Expenses that are lavish, extravagant, or are for personal/vacation purposes cannot be deducted. Expenses for travel/commuting between home and office cannot be deducted.
- **Utilities:** Normal costs associated with running a business are deductible, such as electricity, heating, and telephone. Note: if a home office is used, only a second phone line specifically for business is deductible.
- **Wages:** Any wages, salaries, or bonuses paid to employees who are NOT a member of the household are deductible. Wages paid to self or any household members are not deductible.
- **Other:** Other items that may be deductible include membership dues, subscriptions to relevant technical or trade journals, legal and professional fees (lawyers or accountants – not including legal fees paid to acquire business), minor costs related to the repair of work related equipment, cost of medical insurance premiums are deductible at a 25% rate (i.e. \$1,000 premium = \$250 deductible expense). Bad business debts are deductible if there has been an actual loss of money.

Fuel and Electric Assistance Program

Rental Income Declaration



Applicants who collect rental income are required to provide all documentation for the prior 365 days of income. Generally, this can be provided with a complete copy of the current year tax return with all schedules included. If you collect rental income but do not file taxes, you are required to submit this completed rental income declaration along with documentation of income and expenses. Please note:

- You must complete all information and sign and date the bottom of the form.
- Along with form, you must present supporting documentation in an orderly fashion. Documents should be organized in date order and, if including deductions, should be clearly labelled.

Applicant Name _____

Rental Type ☐ Apartment ☐ Condo ☐ Duplex ☐ Mobile Home ☐ Single Family ☐ Room

Rental Address _____ City _____ Zip Code _____

365 Day Period From _____ To _____ *Complete the below for this time period.*

Gross Income from Rental Property \$ _____

Expenses – List the totals for any rental-related expense for the period indicated above that you would like to see deducted. You must provide documentation (receipts) as proof of expenses in order to have expenses deducted.

- | | | |
|---------------------------------|----------|---|
| 1. Heating and Electrical Costs | \$ _____ | <i>If these costs are included in the rent only</i> |
| 2. Property Insurance | \$ _____ | |
| 3. Property Taxes | \$ _____ | |
| 4. Repairs (under \$1,000) | \$ _____ | |
| 5. Repairs (major - \$1,000+) | \$ _____ | List repair _____ |
| 6. Services (cleaning, legal) | \$ _____ | |
| 7. Other Expenses | \$ _____ | List expense(s) _____ |

Total Expenses (lines 1 through 7) = \$ _____

If you live in one of the units in this building, please complete the following:

\$ _____ Total Expenses	Divided by	_____ # of units	=	\$ _____ Cost per Unit
\$ _____ Total Expenses	Minus	_____ Cost of your Unit	=	\$ _____ Adjusted Expenses
\$ _____ Gross Income	Minus	_____ Adjusted Expenses	=	\$ _____ Net Profit

If you do NOT
live on the
property:

Gross Income
minus
Total
Expenses
= Net Profit

I certify that the above information is complete, accurate, and true to the best of my knowledge. I will provide the necessary documentation for the above information upon request if necessary. If I understand that if I have intentionally falsified any of this information, I could be fined and/or imprisoned.

Signature

Date

NEW HAMPSHIRE FUEL ASSISTANCE PROGRAM
Vendor Agreement between
Tri-County Community Action Program (TCCAP)
and

for
Supplying Home Energy Assistance under The Low-Income Home
Energy Assistance Act of 1981 as Amended

_____, hereinafter referred to as the “Supplier”, a home energy vendor doing business in the State of New Hampshire, and all its subsidiaries and branch offices listed on Attachment 1 to this Vendor Agreement, and made part herein by reference, agrees to deliver Home Energy to Eligible Households. Tri-County Community Action Program, as Subgrantee of the State of New Hampshire Fuel Assistance Program (FAP), agrees to pay the Supplier on behalf of Eligible Households for Home Energy delivered to said Eligible Households under the terms and conditions set forth below.

Section 1. DEFINITIONS

- (1) The term “Subgrantee” means the above-mentioned Community Action Agency, the Tri-County Community Action Program, in the State of New Hampshire.
- (2) The term “Supplier” means the above-named company, which supplies Home Energy directly to an Eligible Household.
- (3) The term “Eligible Household” means an applicant certified by the Subgrantee as qualifying for assistance for FAP, on whose behalf a payment has been made by the Subgrantee to the Supplier.
- (4) The term “Benefit” means the dollar amount of assistance an Eligible Household is qualified to receive as determined by FAP or Subgrantee
- (5) The term “Emergency” means a fast-tracked Benefit for an Eligible Household requiring immediate assistance to prevent or alleviate a no-heat situation.
- (6) The term “Payment” means the receipt by the Supplier of a check from the Subgrantee for the benefit that the Eligible Household is qualified to receive.
- (7) The term “Home Energy” means a source of heating or cooling in a residential dwelling (e.g. heating oil, kerosene, propane, natural gas and/or electricity).

Section 2. FUEL ASSISTANCE PROGRAM (FAP) REQUIREMENTS

The Supplier agrees to meet the following State of New Hampshire FAP requirements:

- The Supplier will charge the Eligible Household, in the normal billing process, any difference between the actual cost of the Home Energy and the amount of the payment made by the Subgrantee under the New Hampshire Fuel Assistance Program.
- No deliveries of Home Energy may be made to barrels or moveable holding tanks.
- The FAP Program Year 2026-2027 (PY 27) **delivery period begins on October 1, 2026.** The PY27 FAP Benefits for non-utility Suppliers of Home Energy can be used for any delivery/service made on or after October 1, 2026.
- **The Benefit is available for use during the Program Year of the receipt and the Program Year immediately following. PY27 funds expire after May 31, 2028.** Any PY27 Benefit amount that remains unspent on Benefits for an Eligible Household on or before May 31, 2028 must be refunded by the Supplier to the Subgrantee by August 1, 2028.
- The Supplier will apply FAP Benefits to any indebtedness incurred on or after October 1, 2026 whether or not the delivery of Home Energy has previously been paid for by the Eligible Household or on behalf of the Eligible Household. It is not the intent that Eligible Households be reimbursed by the Supplier. The Supplier must notify the Eligible Household's account holder of any account credit established due to a FAP payment.
- If the Supplier uses a variable pricing structure with a discount rate for prompt payment, the maximum rate charged for Home Energy paid for with FAP funds must be the discounted rate. When a Home Energy delivery is requested/pledge is made, Subgrantee will pay Vendors for that delivery with FAP funds.
- Eligible Households may use up to \$300 in furnace repair or service/cleaning costs each program year.
- Any outstanding FAP **Benefit refunds** due to account closures for any Eligible Households should be returned to the Subgrantee within 30 calendar days of the account closure. All refunds must identify the Eligible Household name, case number, the reason for the refund, and the FAP program year in which the funds were initially paid to the Supplier.
- Suppliers must submit a current copy of the NH Secretary of State Certificate of Good Standing with this Vendor Agreement. (www.sos.nh.gov)
- The Supplier will designate a contact person to interact with Subgrantee who must be familiar with the terms of this FAP Vendor Agreement. Suppliers who have Vendor Agreements with multiple Subgrantees should assign one vendor contact person.

Section 3. EMERGENCY PROCEDURES

The Supplier agrees to provide Home Energy promptly to an Eligible Household after receiving direct authorization of the Benefit by email or telephone from Subgrantee. Any special delivery fees must be pre-approved in writing by Subgrantee.

Section 4. DATA COLLECTION

The Supplier agrees to provide accurate written documentation of an Eligible Household annual fuel or utility usage and cost upon request by the Eligible Household, Subgrantee, and/or the FAP administrator.

Section 5. PAYMENT PROCEDURES AND USE OF FUNDS

The Supplier will identify all subsidiaries and branch offices providing Home Energy under this Agreement by completing Attachment 1, Listing of Supplier's Subsidiaries and Branch Offices.

The Supplier will receive notification of FAP Benefits and will be sent payment of Benefit amount for each Eligible Household as a one-time payment to be applied as a credit to the Supplier's account for that Eligible Household. The Benefit amount should be utilized until expended or expired.

This credit can be applied to any deliveries or services on or after the start of the program year (October 1, 2026) for Suppliers with deliverable Home Energy. The FAP Benefit can pay for the cost of Home Energy products as well as fees related to the start-up of service, delivery, tank setting or priming fees, reconnection fees, and tariff charges. The FAP Benefit cannot be used for security deposits, finance charges, or tank leasing or rental. There will be an annual request for a list of Eligible Households along with any remaining Benefit balance.

The Subgrantee is required to pay the Supplier within 30 calendar days after notification of the Benefit is sent. The Supplier will return any duplicate payments received on behalf of any Eligible Household to Subgrantee in the same FAP program year.

Section 6. RECORDS

The Supplier will maintain an accounting system for fiscal records covering all Home Energy supplied and Benefits received and applied to the accounts of Eligible Households under this Vendor Agreement for a period of three years from the effective credit dates. The Supplier's records will indicate:

1. The amount of Home Energy delivered to Eligible Households; and
2. The amount of the Benefit payments for Home Energy made on behalf of the Eligible Household by the Subgrantee.

The Supplier, upon written request from the FAP administrator, Subgrantee, or an Eligible Household (with regard to their own account) will promptly provide a status report indicating:

1. The Benefit amount of an Eligible Household received by Supplier;
2. The Home Energy supplied to date to an Eligible Household; and
3. The amount of Benefit received by Supplier and remaining in an account for the Eligible Household.

A FAP or Subgrantee representative may, during the Supplier's normal business hours, inspect and copy, at its own expense, the Supplier's records that pertain only to Eligible Households receiving FAP Benefits.

All information pertaining to the Eligible Households serviced under this Vendor Agreement will remain confidential and will only be released after a written request from the Subgrantee or the FAP unless an employee from either entity requests such information to assist an Eligible Household with a fuel emergency.

Section 7. NON-DISCRIMINATION & ADVERTISING

The Supplier shall not advertise in a manner that implies that FAP assistance is available only through that Supplier, or that FAP applications are taken by the Supplier, or that in any other way misleads the public about the FAP.

The Supplier will assure that no Eligible Households will be treated adversely by the Supplier because of such assistance under applicable provisions of New Hampshire law or any other regulatory requirements (42 U.S.C. 8624 (b)(7)(C)). The Supplier will not discriminate in either the cost of Home Energy or related services provided against any Eligible Household on whose behalf payments are made. The Supplier also agrees to respect the confidentiality of Eligible Households.

Section 8. FUEL ASSISTANCE CONTRACT DURATION & TERMINATION

The Supplier agrees to notify the Subgrantee and the NH Fuel Assistance Program if it is not able to fulfill any or all of the requirements in this Vendor Agreement at any time.

The Supplier's failure to comply with any of the provisions of this Vendor Agreement shall, at the sole option of the FAP, enable the FAP to terminate this Vendor Agreement without liability thereto, and shall entitle the FAP to bar the Supplier from participation in future Fuel Assistance Programs administered by the State of New Hampshire and to avail itself of any other remedies available under any applicable law. The Supplier must notify the Subgrantee at least 120 days before filing for bankruptcy or closure of the business and must return all Benefit funds provided to the Supplier by Subgrantee and not expended on Eligible Household accounts at least 91 days before filing for bankruptcy and/or closure.

This Vendor Agreement shall be in effect until midnight August 1, 2028 (when all PY27 benefits should be expended or returned). The Supplier, its successors and its assignees, agree that the rights of Eligible Households which have received Home Energy under this Vendor Agreement shall not be prejudiced in the event of early termination of said agreement. In the event of early termination of this Vendor Agreement, the Supplier shall return all FAP funds provided to the Supplier by Subgrantee and not expended on Eligible Household accounts within 30 days from termination to the Subgrantee.

Section 9. GOVERNMENT REQUIREMENTS

The terms of this Vendor Agreement and its execution are subject to applicable laws and regulations of the State of New Hampshire. No eligible household will be treated adversely because of such assistance under applicable New Hampshire law.

Section 10.**SIGNATURES**

Name of Supplier (Home Energy Vendor)

Employer ID or SS #

Supplier Representative (Print Name)

DUNS or UEI Number

Supplier Representative's Hand-Signature

Date

Owner

Designated Supplier Staff Contact Person (Print Name)

Vendor Contact Person Phone Number

Vendor Contact Person Email

Supplier Street Address

Supplier Phone Number

Town/City

State

Zip Code

Mailing Address, if different from address above – Street Address or PO Box

Town/City

State

Zip Code**Tri-County Community Action Program**

TCCAP FAP Staff Person Signature

Date

TCCAP Executive Signature

Date

Listing of Supplier's Subsidiaries and Branch Offices

Are your branch offices authorized to receive payments? Yes ____ No ____

If no, all payments are to be made to the main office at:

Company Name

Address

Phone Number

Email Address

- | | |
|--|---------------------------|
| 1. _____
Subsidiary/Branch Office Name | _____
Address |
| _____
Manager | _____
City, State, Zip |
| _____
E-mail Address | _____
Phone |
| 2. _____
Subsidiary/Branch Office Name | _____
Address |
| _____
Manager | _____
City, State, Zip |
| _____
E-mail Address | _____
Phone |
| 3. _____
Subsidiary/Branch Office Name | _____
Address |
| _____
Manager | _____
City, State, Zip |
| _____
E-mail Address | _____
Phone |
| 4. _____
Subsidiary/Branch Office Name | _____
Address |
| _____
Manager | _____
City, State, Zip |
| _____
E-mail Address | _____
Phone |

NEW HAMPSHIRE FUEL ASSISTANCE PROGRAM VENDOR AGREEMENT

Vendor Agreement between Tri-County Community Action Program, hereinafter referred to as “Subgrantee,” and

hereinafter referred to as the “Supplier”, a Home Energy vendor doing business in the State of NH, where Supplier agrees to deliver Home Energy to Eligible Households, and Tri-County Community Action Program, as Subgrantee of the State of New Hampshire Fuel Assistance Program (FAP), agrees to pay the Supplier on behalf of Eligible Households for Home Energy delivered under the terms and conditions set forth below.

Section 1. DEFINITIONS

- (1) The term “Subgrantee” means the above-mentioned Community Action Agency, the Tri-County Community Action Program (TCCAP), in the State of New Hampshire.
- (2) The term “Supplier” means the above-named company, which supplies Home Energy directly to an Eligible Household.
- (3) The term “Eligible Household” means an applicant certified by the Subgrantee as qualifying for FAP, on whose behalf a Payment has been made to the Supplier.
- (4) The term “Benefit” means the dollar amount of assistance an Eligible Household is qualified to receive as determined by FAP or the Subgrantee.
- (5) The term “Payment” means the receipt by the Supplier of a Payment from the Subgrantee for the Benefit that the Eligible Household is qualified to receive.
- (6) The term “Home Energy” means a source of heating in a residential dwelling (i.e., wood/pellets).

Section 2. FUEL ASSISTANCE PROGRAM (FAP) REQUIREMENTS

The Supplier agrees to meet the following State of New Hampshire FAP requirements:

- The Supplier will charge the Eligible Household, in the normal billing process, any difference between the actual cost of the Home Energy and the amount of the Payment made by the Subgrantee of the State of New Hampshire Fuel Assistance Program.
- The FAP Program Year 2026-2027 (PY 27) **wood delivery period begins on July 1, 2026. PY27 FAP Benefits can be used for any wood delivery made on or after this date. The Benefit is available for use during the Program Year of the receipt and the Program Year immediately following. PY27 Program Year funds expire after May 31, 2028.** Any PY27 Benefit amount remaining unspent at this time must be refunded by the Supplier to the Subgrantee by August 1, 2028.

- Any outstanding FAP Benefit refunds due to account closures for any Eligible Households should be returned to the Subgrantee within 30 calendar days of the account closure. . All refunds must identify the Eligible Household name, the reason for the refund, and the FAP program year in which the funds were initially paid to the Supplier.
- All participating wood/wood product vendors are required to submit a current copy of their NH Secretary of State Certificate of Good Standing (www.sos.nh.gov) along with this signed FAP PY27 Vendor Agreement. This requirement may be waived if unable to obtain.
- The Supplier agrees to provide Home Energy on an emergency basis to an Eligible Household after receiving direct authorization of the Benefit by email or telephone from the Subgrantee. Any special delivery charges must be pre-approved by Subgrantee.

Section 3. PAYMENT PROCEDURES

The Subgrantee is required to pay the Supplier within 30 calendar days after notification of the Benefit is sent. The Payment sent will be the full Benefit amount to be applied to the customer's account as credit to be utilized until expended or expired. The credit can pay for the cost of the Home Energy as well as any delivery fees or tariff charges. The Supplier agrees to provide once a year an accurate written list of FAP customers along with any remaining Benefit balance.

Section 4. NON-DISCRIMINATION AND ADVERTISING

The Supplier shall not advertise in a manner that implies that FAP assistance is available only through that Supplier, or that FAP applications are taken by the Supplier, or that in any other way misleads the public about the FAP.

The Supplier will assure that no Eligible Households will be treated adversely because of such assistance under applicable provisions of New Hampshire law. The Supplier will not discriminate in either the cost of goods or services provided against any Eligible Household whose behalf the State of New Hampshire or its agents make Payments. The Supplier also agrees to respect the confidentiality of those households participating in the Fuel Assistance Program.

Section 5. FUEL ASSISTANCE CONTRACT DURATION AND TERMINATION

The Supplier agrees to notify the Subgrantee and the NH FAP if it is not able to fulfill any or all of the requirements in this vendor agreement at any time. The Supplier's failure to comply with any of the provisions of this Vendor Agreement shall, at the sole option of the FAP, enable the FAP to terminate this Vendor Agreement without liability thereto, and entitle the FAP to bar the Supplier from participation in future Fuel Assistance Programs administered by the State of New Hampshire and to avail itself of any other remedies available under any applicable law. The terms of this agreement and its execution are subject to the applicable laws and regulations of New Hampshire. This Vendor Agreement shall be in effect until midnight August 1, 2028. (when all PY27 benefits should be expended or returned) In the event of early termination of this Agreement, the Supplier shall return all FAP funds provided to the Supplier and not expended on Eligible Household accounts within 30 days from termination to the Subgrantee.

Section 6. SIGNATURES

Supplier Representative's Hand Signature

Employer ID or SS #

Supplier Representative (Print Name)

Date

Phone Number

Email Address

Supplier Name and Street Address

Town/City

State

Zip Code

Mailing Address, if different from physical address above - Street Address or PO Box

Town/City

State

Zip Code

Tri-County Community Action Program

TCCAP FAP Staff Person Signature

Date

TCCAP Executive Signature

Date

Exhibit I

PY24 Fuel Assistance Program Authorization to Spend (aka Approval to Obligate)						
SAMPLE ONLY	CAPBM	CAPSC	SCS	SNHS	TCCAP	STATEWIDE
Program Funds						
PY 23 Funds Remaining	\$ 66,643	\$ 772,405	\$ -	\$ 4,295,035	\$ -	\$ 5,134,083
PY 24 Funds Remaining	\$ 3,157,257	\$ 1,955,953	2,457,048	\$ 7,013,005	\$ 2,498,808	\$ 17,082,071
Additional PY 24 Funds Added on 8/7/24	\$ 241,725	\$ 157,358	\$ 209,962	\$ -	\$ 271,582	\$ 880,627
TOTAL Amount Authorized to Spend	\$ 3,465,625	\$ 2,885,716	\$ 2,667,010	\$ 11,308,040	\$ 2,770,390	\$ 23,096,781
Below - only Additional funds updated						
Program Support (2%) Funds						
PY 24 Funds Authorized	\$ 65,426	\$ 30,524	\$ 31,706	\$ 77,365	\$ -	\$ 205,021
Additional PY 24 Funds Added 8/7/24	\$ 4,933	\$ 3,211	\$ 4,285	\$ -	\$ -	\$ 12,429
TOTAL Amount Authorized to Spend	\$ 70,359	\$ 33,735	\$ 35,991	\$ 77,365	\$ -	\$ 217,450
Administrative Funds						
PY 23 Funds Remaining	\$ 82,965	\$ -	\$ 192,295	27,399	\$ 313,443	\$ 616,102
PY 24 Funds Remaining	\$ 197,117	\$ 11,407	\$ 176,023	\$ 638,847	\$ 315,581	\$ 1,338,975
Additional PY24 Funds Added 8/7/24	\$ 24,670	\$ 16,060	\$ 21,422	\$ -	\$ 27,155	\$ 89,307
TOTAL Amount Authorized to Spend	\$ 304,752	\$ 27,467	\$ 389,741	\$ 666,246	\$ 656,179	\$ 2,044,384
Assurance 16 Funds						
PY 23 Funds Remaining	\$ -	\$ -	\$ -	\$ 117,018	\$ -	\$ 117,018
PY 24 Funds Remaining	\$ 67,421	\$ 54,804	\$ 57,387	\$ 425,400	\$ 78,487	\$ 683,499
TOTAL Amount Authorized to Spend	\$ 67,421	\$ 54,804	\$ 57,387	\$ 542,418	\$ 78,487	\$ 800,517

Fuel and Electric Assistance Program



Landlord/Housing Verification

If heat is included in housing cost, this must be completed & signed by the Landlord/HOA/Condo Assoc.

Property Owner Name _____ Manager Name _____

Mailing Address _____ City _____ State _____ Zip Code _____

Email address _____ Phone _____

Tenant Name _____ Phone _____

Rental Address _____ City _____ Zip Code _____

Initial Date of Occupancy _____ Number of adults (18+) _____ Number of children _____

Please list the name(s) of everyone living in the household: _____

Monthly Rental Amount: \$ _____ Is rent past due? ☐ Yes ☐ No If yes, by how much \$ _____

Is rent subsidized? ☐ Yes ☐ No If yes, tenant portion: \$ _____/mo

Rental is: ☐ Apartment ☐ Condo ☐ Duplex ☐ Mobile Home ☐ Single Family ☐ Room ☐ Hotel/Motel

Is there a Condo Association or HOA fee with heat included? ☐ Yes ☐ No

of Rooms in Home: Bedrooms _____ Bathrooms _____ Kitchen _____ Dining Rm _____ Living Rm _____ Total Rooms _____

Do not include closets/pantries, hallways, unheated attics/basements/porches, etc.

Primary Heat Type ☐ Oil ☐ Kerosene ☐ Propane ☐ Electric ☐ Natural Gas ☐ Wood ☐ Pellets

Secondary Heat ☐ Oil ☐ Kerosene ☐ Propane ☐ Electric ☐ Natural Gas ☐ Wood ☐ Pellets ☐ None

Utilities Included: ☐ Heat* ☐ Electric ☐ None

***Heat Included? Review & complete page two!**

By signing this form, I swear that the above information is true, complete, and accurate. I understand that if I knowingly give inaccurate or incomplete information pertaining to the tenant's eligibility for the program(s), I am breaking the law and can be prosecuted; conviction may result in imprisonment and/or fine.

If heat is included in rent or association costs, I acknowledge that I have reviewed both pages of this agreement and that this agreement is legal and binding and affix my signature with the understanding that I do so under penalty of perjury.

PROPERTY OWNER/MANAGER'S SIGNATURE

DATE

PROPERTY OWNER/MANAGER (Print Name)

DATE

Households with Heat Included in Housing/Rent– Fuel Assistance Agreement

For eligible households with heat included in rent/housing cost, Fuel Assistance Program benefits will be paid directly to the landlord (or HOA/Condo association). Please review the important information below:

- As heat is included in rent, the property owner assumes full responsibility for heating the premises.
- If the tenant is eligible for an assistance benefit, the agency will make a payment to the property owner.
- Payments will be made payable and sent to the name and address indicated below.
- The property owner agrees that the named tenant's rent/cost will be reduced by the payment amount.
- The property owner agrees that the rent shall not increase because of the benefit payment.
- The property owner agrees that, should the tenant move out before the full amount of the benefit is utilized, the owner will refund any unused portion of the benefit to the tenant directly.
- The property owner affirms that the named tenant's rent is not subsidized, in part or whole, by State or Federal Housing program. Tenants with subsidized rent AND heat included in rent are not eligible.

For mailing purposes only, please indicate who the payment should be mailed to (select one):

- ☐ Property Manager
- ☐ Property Owner
- ☐ Condo or Homeowners Association

Name and address for payment below:

Name _____

Physical Address _____

Mailing Address _____

City _____ State _____ Zip Code _____

Payment will be made within 45 days after the date the benefit notification is sent.

NOTE: A requirement for payment is an updated W-9 IRS Form for the person/entity named above.

Community Action Partnership Hillsborough and Rockingham Counties

Community Action Partnership Hillsborough and Rockingham Counties

PO Box 5040

Manchester, NH 03108

Date : 8/5/2026

Case :

New Hampshire Fuel Assistance Program Benefit Notification PLEASE READ CAREFULLY

Dear [REDACTED]

Based on the information you provided regarding income and energy costs, your household has been determined eligible to receive a 2026-2027 Fuel Assistance Program benefit. As requested by you, your assistance will come in the form of :

- A Credit to the following :

Payee	Benefit Amount	Benefit Date	Payee Category
[REDACTED]	\$ 800.00	7/17/2026	Vendor
Total Fuel Assistance Program Benefit	\$ 800.00		

All above listed Utilities/Vendors under the Payee, has received notification of the credit.

Any unspent Fuel Assistance Program credits now extend to a second year! This credit will expire on May 31, 2028.

Please notify this agency of any change of address. Failure to do so may result in the cancellation of benefits.

SAVE THIS LETTER!

You may need it to apply for assistance with other social service programs such as Food Stamps or electric utility assistance programs. If you are pregnant or have children up to the age of 5 years old, or if you are a senior 60 years or older, you may be eligible for the WIC Nutrition Program or the Commodity Supplemental Food Program. WIC and CSFP offer free nutritious foods. Call 1-800-942-4321 to learn more.

If you have any questions, please feel free to contact us at:

CAA Name:	Community Action Partnership Hillsborough and Rockingham Counties
Mailing Address:	PO Box 5040 Manchester, NH 03108
Business Phone:	603 668-8010
Email Address:	
Fax:	

Community Action Program Belknap and Merrimack Counties, Inc.

Community Action Program Belknap and Merrimack Counties, Inc.

PO Box 1016

Concord, NH 03302

Date : 8/3/2026

Case :

Fuel Assistance Program - Denial Notice

Dear [REDACTED],

Your application [REDACTED] for the 2026-2027 Fuel Assistance Program year has been denied for the following reason:

- Your household income is over the maximum allowed for your household size.

If you do not agree with the above determination, you have the right to request an appeal according to the procedures which are enclosed for your convenience.

If you wish to exercise your right to appeal, which may include a Fair Administrative Hearing, please contact us at the following address:

CAA Name:	Community Action Program Belknap and Merrimack Counties, Inc.
Mailing Address:	PO Box 1016 Concord, NH 03302
Business Phone:	603 223-0043
Email Address:	fuelassistance@capbm.org
Fax:	603 228-1898

Tri-County Community Action Program, Inc.

Tri-County Community Action Program, Inc.

610 Sullivan St Ste 302

Berlin, NH 03570



Payment Issue Date : 7/31/2026

Batch ID : 298

Vendor Payment ID : [REDACTED]

2027 VENDOR VOUCHER REPORT

The following is a list of 2027 Fuel Assistance Program (FAP) funds for your customers:

Case Number : [REDACTED]			
Client Name :	[REDACTED]	Payment Amount :	\$1,150.00
Account # :	[REDACTED]	[REDACTED]	[REDACTED]
Account Name :	[REDACTED]	[REDACTED]	[REDACTED]
Fuel Type :	[REDACTED]	[REDACTED]	[REDACTED]
Phone Number :	[REDACTED]	[REDACTED]	[REDACTED]

Total Benefit Amount: \$ 1,150.00

This payment can be applied to the account to be utilized for fuel and utility services or toward rent with heat included in the cost. Allowable payments for deliverable fuels are limited to any services rendered on or after October 1, 2026. If payment is toward rent with heat included, property owner assumes full responsibility for heating the premises and agrees that payment will be used toward the rent of the above-named tenant. The benefit payment will expire on May 31, 2028. Any unused benefit amount after that date must be refunded.

If you have any questions, please feel free to call and then contact the agency name and phone number below:

CAA Name:	Tri-County Community Action Program, Inc.
Mailing Address:	610 Sullivan St Ste 302 Berlin, NH 03570
Business Phone:	603 752-7100
Email Address:	
Fax:	603 752-8041

Appeal and Fair Administrative Hearing Procedures

All Fuel Assistance Program (FAP) applicants who question their denial or the benefits provided are entitled to appeal the decision, which may include a Fair Administrative Hearing. Below is information regarding the appeal and hearing process.

Any applicant has the right to appeal within 30 days of receiving the benefit determination letter for any of the following reasons:

- Applicant believes application was wrongly denied
- Applicant disagrees with the amount of the benefit awarded
- Applicant believes application was not processed within 60 days of application date

(1) To appeal, the applicant should first contact the Community Action agency that processed the application. The FAP director will conduct a review and meet with the applicant via phone or virtual meeting or in person within 10 days of the applicant's request. At the meeting, the applicant will have an opportunity to express any concerns and the FAP Director will have an opportunity to attempt to resolve the dispute.

(2) If the applicant is not satisfied with the outcome of this meeting, they will be referred to the NH Department of Energy (NH DOE) for a second review. The NH FAP Administrator will conduct a second review and meet with the applicant via phone or virtual meeting or in person within 10 days of the applicant's request.

(3) If the applicant is not satisfied with the outcome after the two stages of the appeal above, the applicant may request in writing a Fair Administrative Hearing within 30 days of the conversation with the NH FAP Administrator. The hearing will be scheduled within 20 days of the written request and will meet the following standards:

All hearings shall be held in a location reasonably convenient to the applicant. The hearing officer shall be a NH DOE employee who was not involved in rendering the challenged action or decision. The hearing officer shall review the applicant file prior to the hearing, including:

- FAP application, including supporting household and income documentation
- Written notification to the applicant of denial or other contested decision
- Notes and/or documentation containing information relied upon by FAP staff when making the decision to deny benefits or take the contested action

Applicants have the right to review all documentation prior to the hearing, including the FAP Policy and Procedures Manual. Applicants can bring a representative to the hearing if they wish at their expense. Applicants can request an interpreter to be provided and funded by the NH DOE. At the hearing, applicants may present oral testimony, a written statement, or other evidence and have the right to present witnesses and cross-examine witnesses.

The hearing will be recorded and the decision based on the record and any relevant evidence and information introduced during the hearing. A written decision will be issued by the NH DOE within 10 business days of the hearing.

CAA Assurance 16 Report
PY 27 Assurance 16 Report as of 11/1/2026

CAA NAME

1	Total number of Emergency Households in PY 27:	
2	Number of PY 27 heat included in rent Emergency Households:	
3	Number of PY 26 deliverable fuel and utility Emergency Households:	
4	Number of PY 26 Emergency Households contacted in PY 27:	
5	Number of PY 26 Emergency Households enrolled in PY 27:	
6	Number of PY 26 Emergency Households denied in PY 27:	
7	Number of PY 26 Emergency Households that did not apply in PY 27:	
8	Number of PY 26 Emergency Households that were repeat emergencies in PY 27:	
9	Number of PY 26 Emergency Households that had reduced dependency in PY 27: (received an equal or greater benefit and were not an emergency in PY 27)	
10	Number of PY 26 Emergency Households that achieved greater self-sufficiency in PY 27: (received a lower benefit and were not an emergency in PY 27)	
11	Number of PY 26 Emergency Households that were over income in PY 27:	
12	Number of PY 26 Emergency Households that were new to the program:	

- NOTE 1:** The sum of lines 2 and 3 must be equal to line 1.
- NOTE 2:** The sum of lines 5,6, and 7 must be equal to line 1 at the end of the season.
- NOTE 3:** The sum of the lines 8, 9, and 10 must be equal to line 5.

Number of Households Receiving Counseling in:

Budgeting:	
Energy Conservation:	
Vendor Relations:	
Other (referrals):	

Prepared By:	
Approved By:	
Date Submitted:	

ATTACHMENT X

The 16 Assurances

The LIHEAP statute requires grantees to agree to meet certain conditions, known as the 16 Assurances. Grantees are required to certify the assurances as part of their State Plan.

Assurance 1

The State agrees to use the funds available under this title to:

- (A) conduct outreach activities and provide assistance to low income households in meeting their home energy costs, particularly those with the lowest incomes that pay a high proportion of household income for home energy, consistent with Assurance 5;
- (B) intervene in energy crisis situations;
- (C) provide low-cost residential weatherization and other cost-effective energy-related home repair; and
- (D) plan, develop, and administer the State's program under this title including leveraging programs and the State agrees not to use such funds for any purpose other than those specified in this title.

Assurance 2

The State agrees to make payment under this title only with respect to:

- (A) households in which one or more individuals are receiving:
 - i. assistance under the State program funded under part A of title IV of the Social Security Act;
 - ii. supplemental security income payments under title XVI of the Social Security Act;
 - iii. food stamps under the Food Stamp Act of 1977; or
 - iv. payments under section 415, 521, 541, or 542 of title 38, United States Code, or under section 306 of the Veterans' and Survivors' Pension Improvement Act of 1978;or
- (B) households with incomes which do not exceed the greater of:
 - i. an amount equal to 150 percent of the poverty level for such state; or
 - ii. an amount equal to 60 percent of the State median income;

Assurance 3

The State agrees to conduct outreach activities designed to ensure that eligible households, especially households with elderly individuals, disabled individuals, or both, and households with high home energy burdens, are made aware of the assistance available under this title, and any similar energy-related assistance available under subtitle B of title VI (relating to community services block grant programs) or under any other provision of law which carries out programs which were administered under the Economic Opportunity Act of 1964 before the date of the enactment of this Act.

Assurance 4

The State agrees to coordinate its activities under this title with similar and related programs administered by the federal government and such State, particularly low-income energy-related programs under subtitle B of title VI (relating to community services block grant programs), under the Supplemental Security Income program, under part A of title IV of the Social Security Act, under title XX of the Social Security Act, under the low-income weatherization assistance program under title IV of the Energy Conservation and Production Act, or under any other provision of law which carries out programs which were administered under the Economic Opportunity Act of 1964 before the date of the enactment of this Act.

Assurance 5

The State agrees to provide, in a timely manner, that the highest level of assistance will be furnished to those households which have the lowest incomes and the highest energy costs or needs in relation to income, taking into account family size, except that the State may not differentiate in implementing this section between households described in Assurance 2.

Assurance 6

The State agrees, to the extent that it is necessary to designate local administrative agencies in order to carry out the purposes of this title, to give special consideration, in the designation of such agencies, to any local public or private nonprofit agency which was receiving federal funds under any low-income energy assistance program or weatherization program under the Economic Opportunity Act of 1964 or any other provision of law on the day before the date of the enactment of this Act, except that:

- (A) the State shall, before giving such special consideration, determine that the agency involved meets program and fiscal requirements established by the State; and
- (B) if there is no such agency because of any change in the assistance furnished to programs for economically disadvantaged persons, then the State shall give special consideration in the designation of local administrative agencies to any successor agency which is operated in substantially the same manner as the predecessor agency which did receive funds for the fiscal year preceding the fiscal year for which the determination is made.

Assurance 7

The State agrees, if the State chooses to pay home energy suppliers directly, to establish procedures to:

- (A) notify each participating household of the amount of assistance paid on its behalf;
- (B) assure that the home energy supplier will charge the eligible household, in the normal billing process, the difference between the actual cost of the home energy and the amount of payment made by the State under this title;
- (C) assure that the home energy supplier will provide assurances that any agreement entered into with a home energy supplier under this paragraph will contain provisions to assure that no household receiving assistance under this title will be treated adversely because of such assistance under applicable provisions of State law or public regulatory requirements; and
- (D) ensure that the provision of vendor payments remains at the option of the State in consultation with the local grantees and may be contingent upon unregulated vendors taking appropriate measures to alleviate the energy burdens of eligible households, including providing for agreements between suppliers and individuals eligible for benefits under this Act that seek to reduce home energy costs, minimize the risks of home energy crisis, and encourage regular payments by individuals receiving financial assistance for home energy costs.

Assurance 8

The State agrees to provide assurances that:

- (A) the State will not exclude households described in clause (2)(B) of this subsection from receiving home energy assistance benefits under clause (2), and
- (B) the State will treat owners and renters equitably under the program assisted under this title.

Assurance 9

The State agrees to provide that:

- (A) the State may use for planning and administering the use of funds under this title, an amount not to exceed 10 percent of the funds payable to such State under this title for a fiscal year; and
- (B) the State will pay from non-federal sources the remaining costs of planning and administering the program assisted under this title, and will not use federal funds for such remaining costs (except for the costs of the activities described in paragraph (16)).

Assurance 10

The State agrees to provide that such fiscal control and fund accounting procedures will be established as may be necessary to assure the proper disbursement of and accounting for federal funds paid to the State under this title, including procedures for monitoring the assistance provided under this title, and also provides that the State will comply with the provisions of chapter 75 of title 31, United States Code (commonly known as the "Single Audit Act").

Assurance 11

The State agrees to permit and cooperate with Federal investigations undertaken in accordance with section 2608.

Assurance 12

The State agrees to provide for timely and meaningful public participation in the development of the plan described in subsection (c).

Assurance 13

The State agrees to provide an opportunity for a fair administrative hearing to individuals whose claims for assistance under the plan described in subsection (c) are denied or are not acted upon with reasonable promptness.

Assurance 14

The State agrees to cooperate with the Secretary with respect to data collecting and reporting under section 2610.

Assurance 15

The State agrees to (beginning in fiscal year 1992) provide, in addition to such services as may be offered by State Departments of Public Welfare at the local level, outreach and intake functions for crisis situations and heating and cooling assistance that is administered by additional State and local governmental entities or community-based organizations (such as community action agencies, area agencies on aging and not-for-profit neighborhood-based organizations), and in states where such organizations do not administer functions as of September 30, 1991, preference in awarding grants or contracts for intake services shall be provided to those agencies that administer the low-income weatherization or energy crisis intervention programs.

* This assurance is applicable only to states and to territories whose annual regular LIHEAP allotments exceed \$200,000. Neither territories with annual allotments of \$200,000 or less nor Indian tribes/tribal organizations are subject to Assurance 15.

Assurance 16

The State agrees to use up to 5 percent of such funds, at its option, to provide services that encourage and enable households to reduce their home energy needs and thereby the need for energy assistance, including needs assessments, counseling, and assistance with energy vendors, and to report to the Secretary concerning the impact of such activities on the number of households served, the level of direct benefits provided to those households, and the number of households that remain unserved.